

SNL1997 CHAPTER S-12.2

SCHOOLS ACT, 1997

Amended:

1999 c34; 2000 c32; 2001 c14; 2004 c25; 2004 cL-3.1 s62; 2007 c19; 2012 c13

CHAPTER S-12.2

AN ACT TO REVISE THE LAW RESPECTING THE OPERATION OF SCHOOLS IN THE PROVINCE

(Assented to December 19, 1997)

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[127. SN1991 c17 Amdt.](#)

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Be it enacted by the Lieutenant-Governor and House of Assembly in Legislative Session convened, as follows:

Short title

1. This Act may be cited as the *Schools Act, 1997* .

[1997 cS-12.2 s1](#)

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Definitions

2. In this Act

- (a) "assistant director" means an assistant director appointed by a board under section 79 or the conseil scolaire under section 110;

- (b) "board" means a school board constituted under section 53 and shall, as the context requires, mean the board having jurisdiction over a school or a student attending a school in the district of that board;
- (c) "conseil scolaire" means the conseil scolaire referred to in section 94;
- (d) "department" means the department presided over by the minister;
- (e) "director" means a director appointed by a board under section 79 or the conseil scolaire under section 110;
- (f) "district" means a school district established under section 52;
- (g) "emergency supply", means a person who does not have a valid certificate or licence issued under the *Teacher Training Act* and who is employed to teach in a school;
- (h) "former Act" means the *Schools Act, 1996* ;
- (i) "French first language school" means a school established, maintained and operated by the conseil scolaire and includes a school operated by a board in accordance with section 23 of the *Canadian Charter of Rights and Freedoms* prior to the coming into force of Part V;
- (j) "medical practitioner" means a medical practitioner as defined in the *Medical Act* ;
- (k) "minister" means the minister appointed under the *Executive Council Act* to administer this Act;
- (l) "parent" means
 - (i) the father or mother of a child by birth,
 - (ii) a person who has adopted a child under the *Adoption of Children Act* ,
 - (iii) a person having lawful custody of a child, and
 - (iv) a person who has demonstrated a settled intention to treat a child as a child of his or her family, other than under an arrangement where the child is placed in a foster home for consideration by a person having lawful custody of the child;
- (m) "principal" means a teacher designated as a principal or acting as a principal of a school and includes a person who is the head of a private school;
- (n) "private school" means a school established under section 43;
- (o) "provincial school" means a school established under section 50;
- (p) "school" means the body of school students that is organized as a unit for the purpose of education and includes the teachers and other staff members associated with the unit and the lands and premises used in connection with the unit;
- (q) "school council" means a council referred to in section 25;
- (r) "school day" means a day within a school year during which schools are operated in accordance with this Act and the regulations;
- (s) "school year" means a year commencing on July 1 in a calendar year and ending on June 30 in the following calendar year;
- (t) "student" means a person who is

- (i) enrolled in a school, or
- (ii) required under section 4 to attend school;
- (u) "student record" means a record of information in written or electronic form pertaining to a student;
- (v) "teacher" means a person who has a valid certificate or licence issued under the *Teacher Training Act* and, notwithstanding paragraph (g), includes emergency supply but does not include a director or an assistant director; and
- (w) "trustee" means a person who is elected or appointed to be a member of a board under section 53, 55 or 59 or elected to the conseil scolaire under section 95.

[1997 cS-12.2 s2; 2012 c13 s1](#)

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Labrador Inuit rights

2.1 This Act and regulations and orders made under this Act shall be read and applied in conjunction with the *Labrador Inuit Land Claims Agreement Act* and, where a provision of this Act, regulation or order made under this Act is inconsistent or conflicts with a provision, term or condition of the *Labrador Inuit Land Claims Agreement Act*, the provision, term or condition of the *Labrador Inuit Land Claims Agreement Act* shall have precedence over the provision of this Act.

[2004 cL-3.1 s62](#)

PART I STUDENTS

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Right of access to education

3. (1) A person

- (a) who on December 31 in a school year is 5 years of age or older and younger than 21 years of age; and
- (b) who is
 - (i) a Canadian citizen,
 - (ii) lawfully admitted to Canada for permanent residence,
 - (iii) a child of a Canadian citizen, or
 - (iv) a child of a person who is lawfully admitted to Canada for permanent or temporary residence,

is entitled in that year to an education program in accordance with this Act.

(2) A board may admit to an education program a person 21 years of age or older.

(3) Notwithstanding subsection (1), a board may admit to an education program a person who is not 5 years of age on December 31 in a school year where he or she

- (a) was enrolled in kindergarten in another jurisdiction; and

(b) will be 5 years of age before the end of that school year.

[1997 cS-12.2 s3; 2012 c13 s2](#)

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Compulsory attendance

4. (1) A person who

(a) is entitled under subsection 3(1) to an education program in a school year;

(b) on December 31 in a school year is 6 years of age or older; and

(c) on September 1 in a school year is younger than 16 years of age

shall attend a school for the entire school year.

(2) A student enrolled with a board, unless otherwise permitted under this Act or by the board, shall attend the school that the board directs.

(3) A board shall admit to a school at the beginning of the school year all children who are under the jurisdiction of the board who are 5 years of age before January 1 in that school year.

(4) A board shall establish a kindergarten class in a school for children who are 5 years of age before January 1 in a school year.

[1997 cS-12.2 s4](#)

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Excused from attendance

5. Notwithstanding section 4, a student is excused from attending a school where the student,

(a) is unable to attend school by reason of illness or other unavoidable cause and the teacher is advised of it, but the principal may require that the illness be certified by a medical practitioner;

(b) has been expelled or suspended from school under this Act;

(c) with the prior written approval of the director, is under instruction satisfactory to the director, at home or elsewhere, for a period specified by the director;

(d) has the written permission of the principal to be absent from school for a reasonable period because, in the opinion of the principal and in accordance with the policy of the board, the student will be exposed to other experiences of significant educational and social value;

(e) is absent for another reason that in the opinion of the principal does not constitute neglect or refusal to attend school under this Act; or

(f) has successfully completed the requirements for senior high school graduation.

[1997 cS-12.2 s5](#)

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Home instruction

6. (1) A parent of a student may provide, at home or elsewhere, instruction for that student where the student is excused from attending a school under paragraph 5(c).

(2) A student who is excused from attending school under paragraph 5(c) shall be enrolled under section 15.

[1997 cS-12.2 s6](#)

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Home instruction approval

7. The period for which a student may be excused from attending a school under paragraph 5(c)

(a) shall be valid for no longer than a school year; and

(b) may be renewed upon application to the director each school year.

[1997 cS-12.2 s7](#)

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Instruction in English

8. Every student is entitled to receive instruction in English.

[1997 cS-12.2 s8](#)

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Instruction in French

9. Where an individual has rights under section 23 of the *Canadian Charter of Rights and Freedoms* to have his or her children receive instruction in French, the children of that individual shall receive that instruction in accordance with those rights wherever in the province those rights apply.

[1997 cS-12.2 s9](#)

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Religious instruction & observances

10. (1) Where a student's parent requests in writing, the principal of a school shall excuse that student from participation in a course in religion or a religious observance conducted in the school.

(2) A parent of a student in a school may request of the school principal, giving the principal reasonable notice, that a religious observance be held in the school.

(3) A principal of a school shall, in accordance with the by-laws of the board, comply with a request of a parent with respect to a religious observance.

[1997 cS-12.2 s10](#)

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Conduct of students

11. Every student shall comply with school discipline and the rules of the school and shall carry out the learning activities within the prescribed curriculum.

[1997 cS-12.2 s11](#)

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Student records

12. (1) A student record shall be maintained for each student in the manner required by a policy directive of the minister.

(2) Except as provided in this section a student record may only be reviewed by

(a) the parent of the student; or

(b) the student, if the student is 19 years of age or older,

to whom that student record pertains.

(3) A parent or student, if the student is 19 years of age or older, shall review the student record at a time and with a person designated by the board and receive an explanation and interpretation of information in the student record from that person.

(4) A parent or student, if the student is 19 years of age or older, who is of the opinion that the student record contains inaccurate or incomplete information may request the principal to review the matter.

(5) A student record may be used by the principal and teachers of a school and by board employees to assist in the instruction of the student to whom that student record pertains.

(6) Without the written permission of the parent of a student, or the student if the student is 19 years of age or older,

(a) a student record shall not be admissible in evidence in a trial, inquiry, examination, hearing or other proceeding except to prove the establishment, maintenance, retention or transfer of that student record; and

(b) a person shall not be required to give evidence respecting the content of the student record in a trial, inquiry, examination, hearing or other proceeding.

(7) Notwithstanding subsections (1) to (6), a principal may use a student record to prepare information or a report

(a) required under this Act; and

(b) when requested in writing by a parent, or where a student is 19 years of age or older, the student or former student, for

(i) an educational institution, or

(ii) an application for employment.

(8) This section shall not prevent the use of a report based upon a student record by the principal of a school attended by that student, or the board, for the purpose of a disciplinary proceeding commenced by the principal respecting the conduct of that student or a prosecution of an offence under this Act.

(9) An action shall not lie against a person who contributes test results, evaluations or other information to a student record where he or she acted in good faith within the scope of his or her duties.

[1997 cS-12.2 s12](#)

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School fees

13. (1) A fee shall not be imposed upon a student or parent of a student with respect to the enrolment or attendance of that student or a program or course of study undertaken by that student in a school other than a private school.

(2) Subsection (1) shall not apply to

- (a) a fee for the cost of supplies provided to a student;
- (b) a fee for other services provided to a student outside school hours; or
- (c) a fee payable by a student who possesses a student authorization under a Canadian visitor visa and who has come to the province for the purpose of attending school.

[1997 cS-12.2 s13](#)

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Failure to pay fee

14. (1) A person shall not be denied enrolment or attendance at a school or a program or course of study in a school, other than a private school, by reason only that a fee referred to in subsection 13(2) has not been paid.

(2) Subsection (1) shall not apply to a student who possesses a student authorization under a Canadian visitor visa and who has come to the province for the purpose of attending school.

[1997 cS-12.2 s14](#)

PART II PARENTS

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Compulsory enrolment

15. (1) A parent of a child required to attend school under section 4 shall present that child for enrolment in a school.

(2) A parent of a student who moves his or her place of residence within the province or who takes up residence in the province shall present the student for enrolment in a school within one week of moving to his or her new residence or of taking up residence in the province.

[1997 cS-12.2 s15](#)

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Attendance

16. A parent shall ensure that his or her child attends school unless the child is excused from attendance under this Act.

[1997 cS-12.2 s16](#)

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Offence

17. (1) A parent who neglects or refuses to enrol his or her child in school or does not make every reasonable effort to ensure that his or her child attends school is guilty of an offence.

(2) A person who by threat, intimidation or otherwise prevents or attempts to prevent the attendance of a child at school is guilty of an offence.

(3) A conviction under this section does not bar further prosecution for the continued contravention of this section and each day's continued contravention shall constitute a separate offence.

(4) A person who is guilty of an offence under this section is liable on summary conviction to a fine not exceeding \$500 or to imprisonment for a term not exceeding 3 months or to both a fine and imprisonment.

[1997 cS-12.2 s17](#)

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Duty to report

18. (1) A person who has reason to believe that

(a) a child who is required to be enrolled under section 15 is not enrolled; or

(b) a child who is receiving instruction under section 6 is not receiving instruction in accordance with this Act,

shall report that belief to the director for the district in which that child resides.

(2) An action shall not lie against a person who makes a report or the director with respect to an action taken as a result of a report received under subsection (1) unless the report is made or the action is taken maliciously.

[1997 cS-12.2 s18](#)

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Regular attendance

19. (1) A teacher, principal and director shall make every reasonable effort to secure the regular attendance of students at school.

(2) A principal who

(a) is satisfied that every reasonable effort has been made to have a student who has been absent from school return to regular attendance at school; and

(b) believes reasonably that the absence of a student constitutes a breach of this Act,

shall give a written report of the situation to the director.

(3) Where the director receives a report under subsection (2) and is satisfied that every reasonable effort has been made to have the student return to regular attendance and these efforts have been unsuccessful he or she shall refer that matter for investigation to the nearest detachment of the Royal Newfoundland Constabulary or of the Royal Canadian Mounted Police.

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Parent rights & duties

20. (1) A parent of a student attending a school is entitled to

- (a) be informed of the student's attendance, behaviour and progress in that school; and
- (b) have access on request to annual reports respecting the general effectiveness of education programs in that school and in the school district.

(2) A parent of a student attending school may request that a teacher or the director consult with him or her with respect to the student's education program and that teacher or director shall comply with that request unless the request is unreasonable in terms of frequency or other circumstances.

(3) A teacher or the director may request that a parent of a student consult with him or her with respect to that student's education program and that parent shall comply with that request.

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Liability for damage

21. (1) Where property of a board or an employee is destroyed, damaged or lost by the intentional or negligent act of a student, that student and his or her parents are individually and collectively liable to the board in respect of the act of that student.

(2) Subsection (1) does not apply to a parent of a student who is 19 years of age or older.

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Appeal

22. (1) Where a decision affects a student, the parent of the student or the student, if the student is 19 years of age or older, may appeal the decision

- (a) of a board employee employed in a school, to the principal and his or her decision may be appealed to the board;
- (b) of the principal, to the board; and
- (c) of a board employee not employed in a school, to the board,

and the board's decision on the appeal shall be final.

(2) An appeal under subsection (1) shall be commenced within 15 days from the date that the parent or student is informed of the decision.

(3) An appeal under this section shall be made in accordance with this Act and the by-laws of the board.

(4) A decision made under this section that is final or that is not appealed within the appeal period is

binding upon the student, school, board and other persons affected by that decision.

- (5) This section shall not apply to expulsion decisions under section 37.

[1997 cS-12.2 s22](#)

PART III SCHOOLS

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Application

23. (1) Sections 24 to 41 apply to a school other than a private school.
- (2) Sections 25 and 26 do not apply to a provincial school or a school referred to in section 51.

[1997 cS-12.2 s23](#)

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Principal

24. (1) A board shall appoint a principal for every school in the district.
- (2) A principal appointed under the former Act shall be considered to have been appointed under subsection (1) immediately upon the commencement of this Act.
- (3) A principal of a school shall, subject to the direction of the board,
- (a) provide instructional leadership in the school;
 - (b) ensure that the instruction provided by the teachers employed in the school is consistent with the courses of study and education programs prescribed or approved under this Act;
 - (c) ensure that the evaluation and grading of students is conducted in accordance with generally accepted standards in education;
 - (d) evaluate or provide for the evaluation of programs offered in the school;
 - (e) manage the school;
 - (f) maintain order and discipline in the school and on the school grounds and at those other activities that are determined by the principal, with the teachers of the school, to be school activities;
 - (g) promote co-operation between the school and the communities that it serves;
 - (h) provide for the placement of students in courses of study and education programs prescribed or approved under this Act;
 - (i) provide for the promotion and advancement of students;
 - (j) evaluate or provide for the evaluation of teachers employed in the school;
 - (k) annually provide a report with respect to the school;
 - (l) ensure a student record is established and maintained for each student in the school;

- (m) where the school is a French first language school, promote cultural identity and French language in the school; and
- (n) carry out other duties assigned by the board.

[1997 cS-12.2 s24](#)

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School councils

25. (1) A principal of a school shall establish a school council for the school.
- (2) A school council shall, in accordance with the by-laws of the board, consist of no fewer than 8 members and no more than 15 members, including members under subsections (4) and (7), of whom
- (a) no fewer than 2 and no more than 4 shall be teachers elected by teachers from among teachers of the school;
 - (b) no fewer than 3 and no more than 6 shall be parents elected by parents from among parents of students in the school; and
 - (c) no fewer than 2 and no more than 4 shall be representatives of the community appointed by the school council members elected under paragraphs (a) and (b).
- (3) Where a school council consists of more than 8 members, those members shall be elected and appointed in a manner consistent with the representation of members under paragraphs (2)(a), (b) and (c).
- (4) The principal of a school shall be a member of the school council for that school by virtue of his or her position.
- (5) A parent of a student in a school who is a teacher in that school shall not be eligible to be elected to the school council for that school under paragraph (2)(b).
- (6) Notwithstanding subsections (2), (3) and (9), a school with fewer than 4 teachers, including the principal, shall appoint all of its teachers to the school council.
- (7) In addition to the requirements of subsection (2), in a school where senior high school courses are taught, at least one student who is elected by students in those courses shall be a member of the school council.
- (8) A school council shall elect a chairperson from among its members but the principal is ineligible for election.
- (9) A member of a school council elected or appointed under subsection (2) shall hold office for a period of 3 years and may be elected or appointed to that school council for one further term of 3 years.
- (10) Notwithstanding subsection (9), of the members of a school council first elected or appointed under subsection (2),
- (a) 1/3 or as near as may be possible shall serve for a term of one year;
 - (b) 1/3 or as near as may be possible shall serve for a term of 2 years; and
 - (c) the remaining members shall serve for a term of 3 years.
- (11) Notwithstanding subsection (10), at all times, members of a school council shall be elected and appointed in a manner consistent with the representation of members under paragraphs (2)(a), (b) and (c).

(12) Notwithstanding subsections (9) and (10), a member of a school council shall continue to serve on that school council until he or she is replaced.

(13) A vacancy on the school council shall be filled in the same manner as the member being replaced and the replacement member shall serve only for the remainder of the term of office of the member being replaced and may be re-elected or re-appointed for one term of 3 years.

(14) A principal shall report in writing to the director not later than October 15 of the school year if he or she is unable to establish a school council, and the board, if satisfied that every reasonable effort has been made to establish the school council, may exempt the principal from the obligation to establish a school council or approve a school council for that school year whose composition differs from that required under subsection (2).

[1997 cS-12.2 s25](#)

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Functions of school councils

26. (1) The purpose of a school council is to develop, encourage and promote policies, practices and activities to enhance the quality of school programs and the levels of student achievement in the school.

(2) The functions of a school council are to

- (a) represent the educational interests of the school;
- (b) advise on the quality of teaching and learning in the school;
- (c) facilitate parent and community involvement in teaching and learning in the school; and
- (d) advise the board on matters of concern to the school and the community.

(3) The school council shall

- (a) approve, for recommendation to the board, a plan for improving teaching and learning in the school;
- (b) support and promote the plan approved by the board for improving teaching and learning in the school;
- (c) approve and monitor activities for the raising of funds for the school;
- (d) consider information respecting performance standards in the school;
- (e) assist in the system of monitoring and evaluating standards in the school;
- (f) monitor the implementation of recommendations in reports on the performance of the school;
- (g) conduct meetings with parents and members of the community on matters within its responsibility under this section;
- (h) ensure that the report on the school prepared under paragraph 24(3)(k) is available to members of the public; and
- (i) communicate concerns respecting board policies and practices to the board.

(4) The school council may, subject to the by-laws of the board, approve a levy, the payment of which is voluntary, once in a school year, instead of, or as a supplement to, fund raising activities for the school.

(5) A school council may recommend that the principal of a school provide for a religious observance in the school.

(6) A board shall enter into a protocol with each school council which shall serve as a guide and reference for school council operations.

(7) The board may with the consent of the school council delegate responsibilities to the school council in addition to those set out in subsections (2) and (3).

(8) The school council shall operate in accordance with the by-laws of the board.

[1997 cS-12.2 s26](#)

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School opening

27. (1) A school shall open and close for the school year on the dates determined by the minister.

(2) The Lieutenant-Governor in Council may declare a day as a school holiday and a school shall observe that school holiday but a board shall specify all other holidays and vacation periods in a school year.

[1997 cS-12.2 s27](#)

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School hours

28. In each school day the minimum number of hours of instruction for students shall be

(a) for kindergarten, 2.5 hours; and

(b) for grades 1 to 12, 5 hours.

[2012 c13 s4](#)

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Extended school year

29. (1) The minister may direct that a school which, in his or her opinion, cannot be kept in continuous operation during a school year, be kept open during periods of vacation ordinarily observed by schools.

(2) Where a school is kept open under subsection (1) the provisions of this Act respecting attendance at school shall apply.

[1997 cS-12.2 s29](#)

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Closing

30. A board may authorize the closing of a school or class for a temporary period for a reason referred to in section 32.

[1997 cS-12.2 s30](#)

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Presence of teacher

31. Unless assigned to other duties by the principal or absent because of illness or other unavoidable cause, a teacher shall be in school during a period in the morning and in the afternoon immediately preceding the time set for the opening of school as required by the by-laws of the board.

[1997 cS-12.2 s31](#)

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Teaching days

32. A teacher in a school shall, for the purpose of determining payment of salary, be considered to have taught on a day or part of it when

- (a) the teacher having charge of the school closes it because of inclement weather, under a general authority given to him or her orally or in writing by or under the direction of the board;
- (b) the school is closed by order of the minister responsible for health by reason of disease being or threatening to become epidemic;
- (c) the school is closed by the board at any time after opening to enable repairs to be effected;
- (d) the school is declared uninhabitable by the board because of fire, storm, failure of the sewage system or other cause of a similar nature;
- (e) the teacher was unavoidably prevented from opening the school because of delay in construction of new buildings or the extension, remodelling or renovation of existing buildings and the minister is satisfied that no alternative accommodation was available;
- (f) the school was closed because of lack of heating or for another reason, where, in the opinion of the minister, the closing of the school could not have been avoided by the teacher; or
- (g) the teacher is required to act as a member of the board of arbitration established in accordance with the collective agreement as defined in the *Teachers' Collective Bargaining Act*.

[1997 cS-12.2 s32](#)

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Responsibilities of teachers

33. A teacher's responsibilities shall include

- (a) providing instruction to students and encouraging and fostering student learning;
- (b) promoting goals and standards applicable to the provision of education approved under this Act;
- (c) teaching the courses of study and education programs that are prescribed or approved under this Act;
- (d) regularly evaluating students and periodically reporting the results of the evaluation to the student and his or her parent;
- (e) under the direction of the principal, maintaining and supervising order and discipline among the

students while they are in the school or on the school grounds and while they are attending or participating in activities that are determined by the principal, with the teachers of the school, to be school activities;

(f) where the teacher is employed in a French first language school, promoting cultural identity and French language in the school; and

(g) carrying out those duties that are assigned to the teacher by the principal or the board.

[1997 cS-12.2 s33](#)

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School attendance record

34. A teacher shall keep a record of student attendance in a manner approved by the minister.

[2012 c13 s5](#)

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School attendance record as evidence

35. A copy of the school attendance record maintained in a school or, in the absence of a school attendance record, a certificate signed by the principal of the school respecting the attendance record of a student is, in the absence of evidence to the contrary, admissible in evidence in all courts in a prosecution for an offence under this Act and is proof of the information contained in the school attendance record or the certificate without proof of the signature or of the official capacity of the person who signed the school attendance record or certificate.

[2012 c13 s6](#)

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Suspension

36. (1) A teacher may suspend a student from a class period in accordance with the by-laws of the board.

(2) A teacher shall report a suspension of a student to the principal as soon as practicable, but in any event before the end of that school day.

(3) A principal may in accordance with the by-laws of the board suspend a student from

(a) one or more class periods;

(b) one or more courses or school programs;

(c) school;

(d) riding on a school bus; and

(e) participating in an activity sponsored or approved by the board.

(4) A principal may reinstate a student suspended by the principal or a teacher.

(5) A period of suspension shall be in accordance with the by-laws of the board and shall be no longer than 30 school days in total in a school year.

(6) Notwithstanding subsection (5), the director may approve the extension of a period of suspension if the principal can demonstrate that the presence of the suspended student in the school threatens the safety of board employees or students or frequently and seriously disrupts the classroom or the school.

(7) Where a period of suspension is extended under subsection (6), before reinstating the student, the director may require certification from a medical practitioner or other professional person whom the director considers appropriate, that the student no longer threatens the safety of board employees or students.

(8) Where a principal suspends a student under paragraph (3)(b), (c), (d) or (e), the principal shall immediately

- (a) inform the student's parent of that suspension;
- (b) report in writing to the student's parent and to the student all the circumstances respecting the suspension; and
- (c) report in writing to the director all the circumstances respecting the suspension.

(9) Upon receiving a report from a principal under paragraph (8)(c), the director, within 3 school days of receiving the report, shall

- (a) uphold the suspension;
- (b) alter the terms of the suspension; or
- (c) cancel the suspension.

(10) Where the suspension is cancelled under paragraph (9)(c) the director may strike the suspension from the student record.

[1997 cS-12.2 s36](#)

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Expulsion

37. (1) Where a student is persistently disobedient or defiant or conducts himself or herself in a manner that is likely to injuriously affect the proper conduct of the school, the principal shall

- (a) warn the student and record the date of and reason for the warning;
- (b) notify the student's parent, in writing, that the student has been warned;
- (c) send a copy of the notice referred to in paragraph (b) to the director; and
- (d) discuss with the student's parent the circumstances giving cause for the warning.

(2) Where, after a reasonable period and consultation with appropriate employees of the board, it is determined that the student has not made a satisfactory effort to reform, the principal shall report in writing to the director and recommend to the director that the student be expelled.

(3) Prior to the director making an order under subsection (4), the parent or the student, if the student is 19 years of age or older, may make representations to the director.

(4) Within 3 school days of receiving a report under subsection (2) the director shall consider the recommendation and shall order that the student be expelled or not be expelled.

- (5) A board may re-admit a student who has been expelled.

(6) Where a student is expelled, the director shall notify the parent or, where the student is 19 years of age or older, the student, of the right to have the expulsion reviewed.

[1997 cS-12.2 s37](#)

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Re-admission

38. A student who has been expelled shall have the right to be re-admitted at the commencement of the next school year.

[1997 cS-12.2 s38](#)

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Review of expulsion

39. (1) Where a student has been expelled under section 37, a parent of the student or, if the student is 19 years of age or older, the student, may, within 15 days of the effective date of the expulsion, make a written request to the board that the expulsion be reviewed.

(2) Upon receiving a request under subsection (1) the board shall appoint 3 of its members as a review panel to investigate the circumstances of the expulsion and to make an order upholding or reversing the order to expel the student.

(3) The order of a review panel made under subsection (2) is binding upon the student, school, board and other persons affected by it.

[1997 cS-12.2 s39](#)

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Maintaining standards

40. (1) The minister shall establish a method of monitoring, evaluating, inspecting and reporting to ensure that each school maintains adequate program and school performance standards and may appoint persons to evaluate and report on the performance of schools in the province.

(2) The minister shall provide public notice of a report received under subsection (1) and make the report available to the public.

[1997 cS-12.2 s40](#)

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Prohibition

41. A person shall not

- (a) disturb or interrupt the proceedings of a school, school council or board;
- (b) loiter or trespass in a school building or on property owned or used by a board; or
- (c) canvass, sell or offer to sell goods, services or merchandise to a teacher or a student in a school without the approval of the school council, and if there is no council, of the board.

[1997 cS-12.2 s41](#)

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Corporal punishment

42. A person shall not administer corporal punishment to a student in a school.

[1997 cS-12.2 s42](#)

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Private schools

43. (1) A person may, with the prior written permission of the minister, establish and operate a private school in the province.

(2) A person proposing to establish a private school shall provide to the minister

(a) the name of the person who will own or operate the private school;

(b) the purpose for which the private school is to be established;

(c) a description of the classes and education programs to be taught in the private school; and

(d) additional information that may be requested by the minister.

[1997 cS-12.2 s43](#)

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Private school requirements

44. Before permission to establish and operate a private school is given, a person shall satisfy the minister that

(a) the buildings or premises to be used by the private school are appropriate for use as a school;

(b) the courses of instruction to be offered in the private school are as prescribed or approved by the minister; and

(c) the teachers to be employed in the private school hold a valid certificate or licence issued under the *Teacher Training Act* .

[1997 cS-12.2 s44](#)

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Private school inspection

45. (1) The minister may appoint a person to inspect a private school.

(2) A person acting under subsection (1) may enter a private school at all reasonable hours and conduct an inspection of the school and all records or documents relating to it.

[1997 cS-12.2 s45](#)

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Private school revocation

46. The minister may revoke or suspend his or her permission to establish or operate a private school where, in the opinion of the minister, that private school does not comply with the requirements of this Act.

[1997 cS-12.2 s46](#)

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Private school report

47. (1) The person in charge of a private school shall annually make a report to the minister furnishing the statistical information regarding enrolment, staff, courses of study and other information that the minister may require.

(2) A private school approved by the minister shall inform the minister before July 1 of each school year of an intention to vary or change a program in that school.

[1997 cS-12.2 s47](#)

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Private school operation

48. (1) A person shall establish and operate a private school in accordance with terms and conditions set by the minister.

(2) Where a private school is the only school available for students of particular grades, the sections of this Act relating to the responsibility of boards, parents, principals, teachers and students shall, with the necessary changes, apply as if it were not a private school.

(3) Students attending a private school shall be subject to provincial testing programs required by the minister or under this Act.

[1997 cS-12.2 s48](#)

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Offence

49. (1) A person who

- (a) establishes or operates a private school without the written permission of the minister;
- (b) operates a private school where permission of the minister has been revoked or suspended under section 46; or
- (c) contravenes a provision of this Act respecting private schools,

is guilty of an offence and liable on summary conviction to a fine not exceeding \$1,000 and in default of payment to imprisonment for a term not exceeding 3 months or to both a fine and imprisonment.

(2) A conviction under this section does not bar further prosecution for the continued contravention of this section and each day's continued contravention shall constitute a separate offence.

[1997 cS-12.2 s49](#)

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Provincial schools

50. (1) The minister may establish and operate a provincial school.

(2) A provincial school may be operated by the department separately, or by, with or for another department of government, a board or an organization approved by the minister.

(3) The cost of the establishment and operation of a provincial school shall be paid by money voted for that purpose by the Legislature.

[1997 cS-12.2 s50](#)

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Schools in institutions

51. (1) The minister may, where he or she considers it necessary, establish a school in a hospital or similar institution operated by or for the minister responsible for health and in a prison or similar institution operated by the minister responsible for justice.

(2) A school established under subsection (1) shall be administered as directed by the minister.

(3) The opinion of the minister as to what is a similar institution is conclusive for the purpose of this section.

[1997 cS-12.2 s51](#)

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Foreign schools

51.1 The minister may enter into an agreement providing for

- (a) recognition by the province of credits given by schools located outside Canada ;
- (b) the granting of a secondary school diploma by the province to persons who have attended a school located outside Canada ;
- (c) minimum standards for the operation of schools referred to in paragraphs (a) and (b) and the inspection of those schools; and
- (d) other matters necessary for the purpose of paragraphs (a) and (b).

[2000 c32 s1](#)

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School districts

52. (1) The province shall be divided into school districts as set by order of the Lieutenant-Governor in

Council and the Lieutenant-Governor in Council may by order alter the boundaries or change the name of a school district.

(2) Where there is a dispute as to the boundaries of a school district, the minister shall determine those boundaries and that determination shall be final.

(3) An order made under subsection (1) shall be published in the *Gazette* .

[1997 cS-12.2 s52](#)

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School boards

53. (1) There shall be a school board elected for each district.

(2) Each board is a corporation.

(3) A board shall be elected at the time and in the manner directed by the minister subject to the approval of the Lieutenant-Governor in Council.

(4) The number of trustees to be elected for each district shall be set and may be changed by order of the Lieutenant-Governor in Council.

(5) Where fewer trustees are elected to a board than the number required by an order made under subsection (4), the Lieutenant-Governor in Council shall appoint those trustees necessary in order to satisfy the order.

(6) The trustees shall elect from among their members a chairperson and other officers, and the chairperson shall hold office until the next annual general meeting of the board.

(7) A person shall not be elected or serve as a trustee where that person

(a) is an employee of the department unless prior written approval is given by the minister;

(b) is an employee of the board; or

(c) has a contract or interest in a contract with or for the board.

(8) The chairperson, or in his or her absence, the vice chairperson or a chairperson elected for that meeting shall preside over meetings of the board and of the executive committee and shall have the same right to vote as other trustees.

(9) Where a vote is tied, the question shall be considered as resolved in the negative.

[1997 cS-12.2 s53](#)

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District zones

54. For the purpose of ensuring that all parts of a district are represented by trustees, the board shall divide the district into 2 or more zones and shall define the boundaries of those zones.

[1997 cS-12.2 s54](#)

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Rep. by 2001 c14 s1

55. [Rep. by 2001 c14 s1]

[2001 c14 s1](#)

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Executive committee

56. (1) A board shall establish an executive committee composed of the chairperson of the board and other trustees elected to that committee by the trustees.

(2) The executive committee of a board shall act in the place of and manage the affairs of the board between regular meetings of the board and may, except where directed otherwise by the board and, in accordance with by-laws of the board, exercise the powers and duties of the board.

(3) A quorum of the executive committee shall be a majority of the members of that committee.

(4) All actions of the executive committee carried out under subsection (2) shall be reported to the board at the next regular meeting of the board.

[1997 cS-12.2 s56](#)

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Dissolution of boards

57. (1) The Lieutenant-Governor in Council may by order dissolve a board on a specified date and that board shall be considered to be dissolved on that date.

(2) Where a board is dissolved under subsection (1) and there is no successor board, all debts and liabilities of the board shall be paid and discharged before that dissolution.

(3) Where a board is dissolved under this section and there is no successor board and all debts and liabilities of the dissolved board are paid and discharged, surplus funds and real and personal property vested in or used by that board shall, subject to an agreement referred to in section 84, vest in the Crown.

(4) Where a board is dissolved under this section and there is no successor board and there is a dispute as to the disposition of property vested in or used by the dissolved board, the minister may, subject to an agreement referred to in section 84, direct the disposition or dispose of the property.

(5) Where a board is dissolved under subsection (1) and there is a successor board, the successor board is the successor in law of the dissolved board and

(a) all agreements, contracts, debts, liabilities and other obligations of that dissolved school board are assumed by the successor board and the successor board shall fulfil and satisfy all those agreements, contracts, debts, liabilities and other obligations;

(b) the successor board is substituted for the dissolved school board in respect of an employment contract held by the dissolved school board on its dissolution; and

(c) title to all real and personal property of a dissolved school board is vested in the successor board, and, for all real and personal property held or used for the purpose of education by a dissolved school board, the successor board is substituted for the dissolved school board in respect of an entitlement, interest, instrument, deed, contract, agreement or other document held by the dissolved school board with respect to that property.

(6) Where there is a dispute as to which board is the successor to a board that has been dissolved and

where there is a dispute as to which board is the successor board respecting the

- (a) assumption of an agreement, contract, debt, liability or other obligation under paragraph (5)(a); or
- (b) substitution for the dissolved school board with respect to an employment contract under paragraph (5)(b),

the minister shall make an order determining the matter and that order shall be final.

[2004 c25 s1](#)

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Vacancy

58. Where a vacancy of a trustee position exists or where a trustee no longer resides in the zone for which he or she was elected, or the trustee absents himself or herself from 3 consecutive meetings of the board without good reason the board shall inform the minister who shall declare that position vacant.

[1997 cS-12.2 s58](#)

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Replacement of trustees

59. (1) Where

- (a) a new district is created;
- (b) all the trustees of a board are dismissed;
- (c) a trustee position is vacant; or
- (d) a board does not have a sufficient number of trustees for a quorum,

the Lieutenant-Governor in Council shall

- (e) appoint a board or a trustee; or
- (f) order that there be an election of a board or of a trustee.

(2) Section 53 applies, with the necessary changes, to the appointment or election of a board or of a trustee under this section.

[1997 cS-12.2 s59](#)

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Board to adopt constitution

60. (1) The board first elected or appointed for a school district shall adopt, not later than 6 months after its appointment or election, a constitution regarding its duties and responsibilities but the constitution and an amendment to the constitution shall not come into force until approved by the minister.

- (2) The constitution under subsection (1) shall include provisions respecting
 - (a) the appointment or selection of a chairperson and other officers of the board;

- (b) the date of the annual meeting of the board;
- (c) a description of the zones established under section 54;
- (d) the appointment or selection of committees considered necessary to the proper functioning of the board; and
- (e) duties of the officers and committees of the board additional to those duties specified in this Act.

(3) Unless otherwise provided by the constitution of the board, a majority of the trustees of the board constitutes a quorum.

[1997 cS-12.2 s60](#)

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Closed meeting

61. A meeting of a board is open to the public unless it is declared by vote of the trustees to be a closed meeting from which members of the public shall be excluded.

[1997 cS-12.2 s61](#)

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Minutes

62. (1) A board and the executive committee of that board shall keep minutes of its proceedings and the minutes shall at all reasonable times be available for inspection by an official of the department designated by the minister, and on request, to members of the public.

(2) Notwithstanding subsection (1), the minutes of a closed meeting shall not be available to the public.

[1997 cS-12.2 s62](#)

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Meetings and business

63. (1) A board shall hold an annual meeting on the date specified in its by-laws, and in any event not later than November 30.

(2) A board shall hold meetings to transact the business of the board not less than once every 3 months.

(3) A special meeting of the board may be held at the request of the chairperson, and shall be called when a written application, specifying the purpose of the proposed meeting, is made to the chairperson by a majority of the trustees and business shall not be transacted at a special meeting other than business for which the meeting was called.

(4) A trustee shall be given at least 4 days' notice, in writing, of the business to be transacted at a regular meeting.

(5) Members of a board shall serve without remuneration but may be reimbursed by a board at a rate set in a policy directive of the minister for travelling and other expenses reasonably incurred in connection with the work of the board.

[1997 cS-12.2 s63](#)

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Execution of documents

64. (1) The board shall by resolution, certified by the chairperson or other person approved by the board, determine those trustees who shall execute all deeds and other documents on behalf of the board.

(2) The board shall by resolution, certified by the chairperson or other person approved by the board, appoint a person or persons as signing officers with respect to the signing of cheques and other daily transactions of the board.

[1997 cS-12.2 s64](#)

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Annual budget

65. (1) A board shall at a date that the minister may determine in each year submit to the minister a copy of its annual budget for the next fiscal year.

(2) The annual budget submitted to the minister under subsection (1) shall provide

(a) detailed estimates of operating expenses of the board for the next fiscal year;

(b) detailed estimates of revenue of the board for the next fiscal year from all sources;

(c) estimates of a surplus projected to accrue to the board in the current fiscal year; and

(d) other information that may be required by the minister.

(3) A board shall not, in a fiscal year, incur, contract for or become liable for an expenditure or debt

(a) unless the annual fiscal budget for that fiscal year has first been approved, in writing, by the minister; and

(b) that is more than the estimated expenditures or debt set out in its annual budget or substantially changes the manner in which an expenditure will be made, except with the prior written approval of the minister.

(4) The minister may appoint a person to examine the books of account and other financial records of a board and, at the request of that person, the board shall provide him or her with its books of account and other financial records and an officer or employee of the board shall answer questions pertaining to them and provide other assistance that the person may request.

[1997 cS-12.2 s65; 2001 c14 s2](#)

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Accounts and audits

66. (1) A board shall keep an accurate record of all receipts and expenditures and ensure that all funds received from the Crown are expended only for the purpose for which they are provided and prepare and submit to the minister at the end of each school year a detailed statement of its accounts audited by a person licensed under the *Public Accountancy Act* in the form and at a time that the minister may require.

(2) The auditor shall, during the course of each audit, inspect the bonds entered into with respect to the board and report on their sufficiency to the minister.

(3) Where a board does not transmit to the minister the statement of accounts referred to in subsection (1), the minister may withhold further payment of funds until statements of account satisfactory to the minister have been provided.

[1997 cS-12.2 s66](#)

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Audit directed by minister

67. (1) Where an audit under section 66 has not been conducted to the satisfaction of the minister, the minister may direct in writing that the accounts of that board be audited by an auditor designated by the minister, and that auditor shall report on his or her audit to the minister.

(2) The board shall, when requested, provide to a person conducting an audit under section 66 or subsection (1), all account books, accounts, supporting documents and other information necessary to complete the audit.

(3) A trustee who refuses to supply a book, account or information in his or her possession which is necessary for an audit may be removed from office by the Lieutenant-Governor in Council.

(4) Where an audit shows that funds are not being expended in accordance with this Act, the minister may withhold further payments of funds until this Act is complied with.

[1997 cS-12.2 s67](#)

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Conflict of interest

68. (1) A trustee has a conflict of interest and shall not vote or speak on a matter before the board or a committee of the board where

- (a) the trustee or a relative of the trustee has a direct or indirect monetary or other interest in the matter; or
- (b) the trustee is an officer, employee or agent of an incorporated or unincorporated company, or other association of persons, that has a direct or indirect monetary or other interest in that matter.

(2) A trustee with a conflict of interest under subsection (1) shall not enter into a contract with the board.

(3) For the purpose of subsection (1) a relative of a trustee means a father, mother, spouse, sister, brother, child, step-child, ward, mother-in-law, father-in-law, sister-in-law or brother-in-law of the trustee.

(4) In order for an interest to be considered as one falling within the prohibition set out in subsection (1) it shall be an interest distinct from an interest held in common with the electors generally in the district of the board.

(5) Notwithstanding subsection (1), a trustee does not have a conflict of interest by reason only that a relative of the trustee is enrolled in a school affected by a board decision.

(6) For the purpose of subsection (5), a relative of a trustee means, in addition to the persons referred to in subsection (3), a grandchild, niece or nephew of the trustee.

[1997 cS-12.2 s68; 1999 c34 s1](#)

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Disclosure

69. (1) Where a trustee has a conflict of interest under section 68, the trustee shall state that he or she has that conflict of interest and its nature at the beginning of discussion on the matter in which he or she has that conflict of interest.

(2) Where the trustee who declares a conflict of interest under subsection (1) is the chairperson he or she shall vacate the chair.

(3) A trustee who declares a conflict of interest under subsection (1) shall leave the meeting while the matter on which he or she has a conflict of interest is being discussed.

(4) A trustee who is in doubt as to whether or not he or she has a conflict of interest under section 68 shall disclose that interest to the board and the board may decide the question by majority vote and its decision on the matter is final.

[1997 cS-12.2 s69](#)

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Proceeding voidable

70. The failure of a person to comply with the requirements of section 69 does not invalidate a proceeding of the board, but the proceeding is voidable by the board before the expiration of 2 years from the date of the passing of the resolution or by-law in respect of which the failure occurred, unless to invalidate the proceeding would adversely affect the rights of another person who acquired those rights under the proceeding and who acted in good faith and without actual notice of the failure to comply with section 69.

[1997 cS-12.2 s70](#)

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Application to Trial Division

71. (1) A person who resides in the district may, within 6 weeks of learning that a trustee may have contravened section 68, apply to a judge of the Trial Division to determine if the trustee has contravened section 68.

(2) The applicant shall state the grounds for alleging a contravention of section 68 by the trustee.

(3) An application shall not be brought under subsection (1) after the expiration of 2 years from the time at which the contravention is alleged to have occurred.

[1997 cS-12.2 s71](#)

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Conflict of interest remedy

72. (1) Where a judge of the Trial Division determines that a trustee contravened section 68, the judge

(a) shall, in the case of a person currently holding office as a trustee, declare the office of the trustee vacant; and

(b) may, where the contravention has resulted in financial gain to the trustee, require the trustee to make

restitution to the person suffering the loss or, where that person is not readily ascertainable, to the board of which he or she is a trustee or former trustee.

(2) Where a judge of the Trial Division determines that a trustee contravened section 68, but was acting in good faith, the trustee shall not have his or her office declared vacant under paragraph (1)(a).

[1997 cS-12.2 s72](#)

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Irregular management of affairs

73. (1) Where the minister is satisfied that the affairs of a board are managed in an irregular, improper or improvident manner, the minister may by order in writing direct the board or a trustee of the board to take action that the minister considers necessary or advisable in the circumstances.

(2) Where satisfied that the affairs of a board are managed in an irregular, improper or improvident manner the Lieutenant-Governor in Council may dismiss one or more of the trustees of the board.

[1997 cS-12.2 s73](#)

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By-laws

74. (1) A board shall adopt by-laws respecting

- (a) the procedure for an appeal under section 22;
- (b) the periods during which teachers are required to be in school under section 31;
- (c) the suspension of students under section 36;
- (d) the calling and conduct of meetings of the board and the administration and business of the board;
and
- (e) the imposition of a levy by a school council.

(2) A board may make by-laws that are not inconsistent with this Act and that are necessary or desirable to carry out its powers and duties under this Act.

(3) A by-law of a board shall not come into force until approved by the minister.

[1997 cS-12.2 s74](#)

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Duties of boards

75. (1) A board shall

- (a) organize and administer primary, elementary and secondary education within the district;
- (b) provide for the instruction of students either by the establishment of a program in its schools or by making an arrangement with another board or with another educational body in Canada ;
- (c) determine policy for the effective operation of primary, elementary and secondary schools in the district;

- (d) ensure that policies and guidelines issued by the minister relating to special education for students are followed in schools under its jurisdiction;
- (e) ensure adequate supervision of all students enrolled in its schools during the period for which the board is responsible for those students;
- (f) develop a policy on employment equity and a plan for implementing the policy;
- (g) appoint and dismiss employees;
- (h) appoint and assign duties of teachers;
- (i) adopt personnel policies which shall follow the personnel administration procedures of the government of the province, with the necessary changes, unless other policies are approved, in writing, by the minister;
- (j) formulate policies for evaluating employees;
- (k) arrange for the bonding of the assistant director of finance and administration and other persons employed by the board whose duties include the collecting, receiving or depositing of money belonging to the board;
- (l) purchase or otherwise acquire, subject to the prior written approval of the minister, real property that it requires;
- (m) ensure that those programs or courses of study, including courses in religious education, and the materials prescribed or approved by the minister are followed in the schools under its control;
- (n) ensure that each school within its district maintains adequate program and performance standards;
- (o) establish policies for student evaluation and student promotion;
- (p) establish priorities for school construction, maintenance and repair and make recommendations to the minister;
- (q) make known to the public and enlist the support of the public for board policies and programs;
- (r) transmit to the minister all records and returns required by this Act and other reports and returns that the minister may require;
- (s) where the board considers it necessary, arrange for a system of transportation of students to and from schools;
- (t) where arrangements are made by it for the transportation of students, ensure that all vehicles engaged in carrying students to and from school are
 - (i) in good mechanical condition,
 - (ii) have adequate liability insurance, and
 - (iii) that an appropriate bus safety program is offered to students who are transported by bus;
- (u) insure and keep insured all its buildings and equipment and obtain insurance indemnifying it against liability in respect of a claim for damages or personal injury;
- (v) admit, at all reasonable times and subject to the terms of an agreement between it and the Memorial University of Newfoundland, a student enrolled in the Faculty of Education or School of Physical Education and Athletics at that University to a school under its control for the purpose of

observation and the practice of teaching;

- (w) admit, at all reasonable times and subject to the terms of an agreement between it and a college or institute, a student enrolled in a training program for student assistants, to a school under its control for the purpose of observation and activities associated with a work term;
- (x) organize and administer a school in an institution, where directed to do so by the minister;
- (y) comply with a policy directive of the minister; and
- (z) immediately inform the minister in writing of a vacancy in the position of director or assistant director.

(2) Notwithstanding paragraph (1)(g), an emergency supply shall not be employed or appointed to teach without the permission of the minister.

(3) A board shall be responsible to the minister for the expenditure of public funds, the conduct of programs of instruction, and evaluation required by the minister and for the maintenance of adequate program and performance standards in schools in the district.

[1997 cS-12.2 s75](#)

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Powers of boards

76. (1) A board may

- (a) employ persons that the board considers necessary for its operations and to carry out its objects;
- (b) enter into agreements for the purpose of carrying out its functions under this Act;
- (c) permit a school building under its control to be used outside of school hours, where this does not interfere with the regular conduct of the school;
- (d) assess a person or group a fee for use of a school under paragraph (c);
- (e) require a student, believed by a teacher to be suffering from a communicable disease or a physical or mental condition which might endanger an employee of the board or other students, to be examined by a medical practitioner or other professional person appointed or approved by the board and, upon the recommendation of the medical practitioner or that other professional person, exclude that student from school until a certificate acceptable to the board is obtained from a medical practitioner or that other professional person permitting that student to return to school, but an exclusion or extension of an exclusion shall be reviewed by the board within 25 school days;
- (f) by notice, in writing, require an employee or other person to undergo a physical examination by a medical practitioner appointed or approved by the board or a psychological examination by 2 medical practitioners or 2 psychologists registered under the *Psychologists Act* and to submit a certificate acceptable to the board signed by the medical practitioners or psychologists setting out the conclusions regarding the physical or mental health of that employee or person;
- (g) summarily dismiss an employee or other person who within 14 days from the date of receiving a notice under paragraph (f) has not made a reasonable attempt to obtain the examination;
- (h) where a certificate submitted to a board under paragraph (f) shows that an employee or other person's physical or mental health would be injurious to an employee of the board or the students, direct the employee or other person to take sick leave or other earned leave or, where he or she has no sick leave or other earned leave or the sick leave or other earned leave is exhausted, require the employee or other person to take unpaid leave;

- (i) suspend from work, with or without pay, an employee or other person who is charged with an offence that in the opinion of the board would make that employee or other person unsuitable to perform his or her duties;
- (j) provide, subject to the written permission of the parent of the student concerned and in conjunction with the appropriate officials responsible for traffic control in the area, a system of school patrols in which a student may assist in the control of motor vehicle traffic on highways or elsewhere so far as the traffic may affect a student going to or from the school;
- (k) raise money, subject to the prior written approval of the minister, upon its corporate credit and for the purpose of the board;
- (l) sell or lease property for the purpose of the board, subject to the prior written approval of the minister;
- (m) levy a fee for the transportation of students; and
- (n) become a member of a provincial association of school boards and pay a required membership fee.

(2) Notwithstanding section 75 or subsection (1) of this section, a board may close a school only after the parents of students affected have been given an opportunity to make representations to the board.

[1997 cS-12.2 s76](#)

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Additional resources for certain schools

77. (1) A board may establish, maintain and operate a school where the school provides programs or courses of study that satisfy the minimum requirements as approved by the minister.

(2) The minister shall determine and, by order, specify a school that is a small school, and the grades which may be taught in that school, in which the requirements of subsection (1) cannot be met, but the school must be maintained and operated because of isolation or because the students cannot reasonably be accommodated in another school.

(3) A school specified in an order under subsection (2) shall receive an allocation of resources, as approved by the minister, additional to the allocation of resources provided for schools not specified in the order under subsection (2).

(4) The board shall ensure that an additional allocation received under subsection (3) for a school is used in that school.

[1997 cS-12.2 s77](#)

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Zoning

78. (1) A board may establish an attendance zone for each school within its district and each student who resides in that zone shall attend a school specified for that attendance zone.

(2) Notwithstanding subsection (1), a board may permit a student who resides in one attendance zone to attend a school in another attendance zone.

[1997 cS-12.2 s78](#)

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Directors

79. (1) A board shall, subject to the prior written approval of the minister, appoint one director and no more than 3 assistant directors, unless a larger number is approved by the minister, one of whom shall be the assistant director of finance and business administration.

(2) A director and an assistant director shall be appointed for not more than a 5 year term and, following a satisfactory performance evaluation by the board, the appointment may be renewed.

(3) A board may terminate the employment of a director or an assistant director, other than for cause, by giving him or her 3 months' written notice, and the board shall report the dismissal in writing to the minister immediately upon giving the notice.

(4) Notwithstanding that a board may employ a director or an assistant director under this section, a contract of employment between a board and a director or an assistant director shall not be entered into without the prior written approval of that contract by the minister, and a contract of employment entered into without that approval shall be void.

[1997 cS-12.2 s79; 2001 c14 s3](#)

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Director duties

80. (1) A director shall, under the direction of the board,

- (a) supervise and direct the staff employed by the board;
- (b) administer, supervise and evaluate all education programs and services for the operation of schools in the district;
- (c) recruit and recommend for appointment employees and, subject to the approval of the board, assign them to positions and duties;
- (d) determine in accordance with this Act the school that a student shall attend;
- (e) recommend the promotion, transfer and termination of employment of employees of the board;
- (f) develop and implement a program of supervision and in-service training for employees of the board;
- (g) supervise all schools, property, teachers, and other employees of the board and visit each school as frequently as feasible and at least once in each school year;
- (h) determine the programs for primary, elementary and secondary school grades and develop policies for promoting students;
- (i) provide leadership in evaluating and improving the education program in the district;
- (j) advise the board on planning for the extension, construction, renovation and repair of buildings;
- (k) assist the board in preparing its annual budget;
- (l) facilitate communication between the board and employees;
- (m) attend meetings and institutes as required by the minister;

- (n) as required by the minister, make annual reports to the board and to the department on the education program in the board's district;
 - (o) be, by virtue of his or her position, a non-voting member of all board committees and attend all meetings of the board and the executive committee, except those meetings or parts of meetings during which matters related directly to the employment of the director are to be discussed;
 - (p) where the director is employed by the conseil scolaire, promote cultural identity and French language in French first language schools; and
 - (q) perform other duties required by the board and under this Act.
- (2) An assistant director shall report to the director.

[1997 cS-12.2 s80](#)

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Suspension by director

81. (1) Where a director is of the opinion that the presence of an employee or other person is an immediate threat to the welfare of students or an employee of the board, the director may suspend that employee or other person, with or without pay, from the performance of his or her duties.

(2) The director shall immediately, in writing, notify the board of a suspension under subsection (1).

(3) Where the board receives a notification under subsection (2), it shall, as soon as is practicable, confirm, vary or revoke the suspension of the employee or other person and shall, where the suspension is confirmed or continued, determine if the suspension shall be with or without pay.

[1997 cS-12.2 s81](#)

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Medical certificate

82. (1) An employee or other person who has been dismissed under paragraph 76(1)(g) shall not accept a position with another board until a certificate of a medical practitioner or a psychologist registered under the *Psychologists Act* as to his or her health, has been submitted to, and considered acceptable by the board.

(2) An employee or other person required to take leave under paragraph 76(1)(h) shall not return to work until he or she delivers to the board a certificate acceptable to the board signed by a medical practitioner in respect of his or her physical health, or by 2 medical practitioners or 2 psychologists registered under the *Psychologists Act* as to his or her mental health, stating that he or she has recovered sufficiently to return to work.

[1997 cS-12.2 s82](#)

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Contracts to be in writing

83. The terms and conditions of a contract of employment between a board and an employee shall be in writing and consistent with this Act.

[1997 cS-12.2 s83](#)

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Property

84. (1) All real and personal property used for the purpose of education by a board immediately before this section comes into force shall continue to be used for the purpose of education by the board.

(2) The use of all real and personal property by a board under subsection (1) shall be without compensation to the person or association of persons in which the title to the property is vested.

(3) Where title to property used for the purpose of education by a board is vested in a denominational authority immediately before this section comes into force, and no property, or funds for the purchase, construction or maintenance of the property, have been provided by a religious denomination, that denominational authority shall transfer that title to the board, and the cost of the transfer of title shall be paid by the board.

(4) Where property used for the purpose of education by a board, or funds for the purchase, construction or maintenance of that property, have been provided by a religious denomination and title to the property is vested in a denominational authority, that denominational authority shall, as soon as practicable, enter into an agreement with the board relating to

- (a) all matters necessary for the board to manage, maintain, use, equip and improve the property while the property is required by the board for the purpose of education; and
- (b) disposition of the property, where the board no longer requires the property for an educational purpose.

(4.1) A denominational authority that holds title to property that is being used by a board for the purpose of education and intends to convey that property to a person, other than a board or another denominational authority, shall first

- (a) provide to the board all financial records relating to the provision of property or funds by the denominational authority for the purchase, construction or improvement of the property; and
- (b) enter into an agreement with the board under subsection (4), where the denominational authority has not already done so.

(4.2) Where a denominational authority fails to comply with the requirements of paragraph (4.1)(a), there shall be no final disposition of the property notwithstanding that it is no longer required by the board for the purpose of education, except where the minister has dispensed with this requirement.

(4.3) Where a denominational authority has conveyed property to a person, other than a board or a denominational authority without first satisfying the requirement of paragraph (4.1)(b), the purchaser of the property and a subsequent purchaser shall be bound by terms and conditions specified in the regulations.

(4.4) Where an agreement under subsection 84(4) has been entered into, a person who purchases property from a denominational authority under a conveyance referred to in subsection (4.1), including a subsequent purchaser, shall be bound by the terms and conditions of that agreement as if it were the denominational authority except as otherwise provided in the regulations, whether or not the agreement has been assigned or transferred by the denominational authority and notwithstanding any agreement, declaration, waiver, representation or statement to the contrary made in association with the conveyance.

(5) Where property used for the purpose of education by a board, or funds for the purchase, construction or maintenance of that property, have been provided by a religious denomination and title to the property is vested in a board, that board shall, as soon as practicable, enter into an agreement with the denominational authority that held title prior to the vesting of title in a school board relating to the disposition of the property, where the board no longer requires the property for an educational purpose.

- (6) The minister shall establish a procedure for the resolution of an agreement
- (a) if an agreement referred to in subsection (4) has not been entered into within 12 months of the coming into force of this section; and
- (b) if an agreement referred to in subsection (5) has not been entered into as soon as practicable.
- (7) An agreement under this section is of no effect until it is approved in writing by the minister.
- (8) In this section and sections 86 and 90 "denominational authority" means
 - (a) an integrating denomination or a person, an organization or a corporation on behalf of an integrating denomination under article 12 of the Document of Integration entered into by the Diocesan Synod of Newfoundland, the Newfoundland Conference of the United Church of Canada, the Territorial Commander for the Salvation Army for Canada and the Newfoundland Presbytery of the Presbyterian Church in Canada;
 - (b) a Roman Catholic Episcopal corporation;
 - (c) the Pentecostal Assemblies of Newfoundland ; and
 - (d) includes another denominational group holding title to property used for the purpose of education.

[1997 cS-12.2 s84; 2007 c19 s1](#)

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Property held by board

85. All property held by a board is considered to be held for the purpose of this Act.

[1997 cS-12.2 s85](#)

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Prohibition

86. (1) A board shall not construct or extend a school where the board does not have title to the land upon which that construction or extension will occur.

(2) Notwithstanding subsection (1) and section 88, a board may construct or extend a school vested in a denominational authority in accordance with an agreement entered into under section 84.

[1997 cS-12.2 s86](#)

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Acquisition of property

87. (1) A board may acquire by gift, lease or purchase, real and personal property.

(2) The acquisition of real property referred to in subsection (1) shall first be approved, in writing, by the minister and approved for the intended use by all necessary approving agencies.

(3) The title to all real property acquired after the commencement of this Act shall be vested in the board in whose district that real property is located.

[1997 cS-12.2 s87](#)

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Shared facilities

88. (1) A board may, with the approval of the minister, enter into an agreement with a person or group of persons for the construction and shared use of a school building or a building to be primarily used as a school.

(2) Unless otherwise approved in writing by the minister, the title to all real property acquired under subsection (1) shall be vested in the board in whose district that real property is located.

[1997 cS-12.2 s88](#)

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Building funds

89. (1) The minister shall provide for the construction, renovation, extension and equipment of schools and school board offices out of money voted by the Legislature.

(2) Subject to the prior written approval of the minister, a board may use funds provided to it under section 91 for renovation and extension of schools and school board offices.

[1997 cS-12.2 s89](#)

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Title to school land

90. (1) Money shall not be paid out for the construction or extension of a school in a district where the board for that district does not have title to the land on which that construction or extension is to occur.

(2) Notwithstanding subsection (1), money may be paid out for the construction or extension of a school, where title to the land is vested in a denominational authority, in accordance with an agreement entered into under section 84.

(3) The minister shall not pay out money for the construction or extension of a school unless

(a) the land has been approved by the appropriate government department or agency; and

(b) the construction or extension is planned in accordance with all applicable building standards and the school planning manual approved by the minister, and the building plans and the site have been approved by an official of the department designated for the purpose by the minister.

(4) In addition to the requirements of subsection (3), the minister may require that the plans be developed and funding identified for landscaping of the land, including the provision of a playground area.

[1997 cS-12.2 s90](#)

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Operational money

91. Money for the operation and maintenance of schools, money for the transportation of students, school supplies and equipment and other money allocated for the purpose of or connected with education in schools shall be paid to boards in accordance with scales set out in a policy directive of the minister.

[1997 cS-12.2 s91](#)

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Salaries & other compensation

92. (1) The minister shall, from money voted for that purpose by the Legislature, arrange for the payment of the salaries of directors, assistant directors and teachers employed in schools and board offices and all the salaries shall be paid in accordance with scales approved by the Lieutenant-Governor in Council.

(2) A board shall not pay remuneration to directors, assistant directors and teachers in amounts greater than those specified under subsection (1).

(3) A board shall not make a payment to an employee as a result of the termination of his or her employment or the abolition of his or her position except as approved by the minister.

(4) A person whose employment has been terminated or whose position has been abolished by a board shall not have the right under an agreement, contract or by way of action to claim for a payment as a result of the termination of his or her employment that exceeds that approved by the minister.

[1997 cS-12.2 s92](#)

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Adjustments in salary

93. (1) The minister may make a payment to adjust the salary of a director, assistant director or teacher employed in a school or a board office, or pay an instalment of money, where there was insufficient payment of that salary or money.

(2) Where an overpayment of salary or money was made to a director, assistant director or teacher employed in a school or a board office, the minister, in consultation with the director, assistant director or teacher, may reduce or withhold future payment of salary or money until the amount overpaid is recovered.

[1997 cS-12.2 s93](#)

PART V FRENCH FIRST LANGUAGE SCHOOLS

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Conseil scolaire

94. (1) A conseil scolaire francophone provincial shall be elected for the province.

(2) The conseil scolaire is a corporation.

(3) The conseil scolaire shall operate in the French language and may as necessary communicate in the English language.

[1997 cS-12.2 s94](#)

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Composition of conseil scolaire

95. (1) The conseil scolaire, not exceeding 12 trustees, shall be elected by the voting members of the

conseils d'école established under section 102 from among the voting members.

- (2) Notwithstanding subsection (1),
 - (a) employees of the conseil scolaire;
 - (b) a person who has a contract with, or an interest in a contract with, the conseil scolaire; and
 - (c) unless prior written approval is given by the minister, employees of the department of the government responsible for education

are not eligible for election to the conseil scolaire.

(3) The number of trustees to be elected by each conseil d'école shall be set and may be changed by order of the minister on the recommendation of the conseil scolaire.

(4) Notwithstanding subsection (3), the first elected conseil scolaire shall comprise 10 trustees elected as follows:

- (a) 4 from the conseil d'école de Port au Port;
- (b) 2 from the conseil d'école de l'ouest du Labrador ;
- (c) 2 from the conseil d'école de l'est du Labrador ; and
- (d) 2 from the conseil d'école de St. John's .

(5) The conseil scolaire shall be elected not later than 30 days after the election of the conseils d'école under section 102.

[1997 cS-12.2 s95](#)

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Replacement of trustees

96. (1) Where a trustee

- (a) resigns or dies;
- (b) no longer resides in the province;
- (c) is absent from 3 consecutive meetings of the conseil scolaire without good reason; or
- (d) is no longer a member of the conseil d'école that elected him or her

the conseil scolaire shall inform the minister who shall declare that position vacant.

(2) Where the minister declares a position vacant under subsection (1), the conseil d'école that elected the trustee shall elect a trustee in his or her place.

(3) Subsections 95(1) and (2) apply to an election of a trustee under subsection (2).

[1997 cS-12.2 s96](#)

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Duties of conseil scolaire

97. (1) The conseil scolaire has, with respect to a French first language school, the same duties as a board under section 75 except for those referred to in paragraph 75(v).

(2) The conseil scolaire shall consult with the voting members of a conseil d'ecole on the operation of a school for which the conseil d'ecole is responsible, including the assignment of teachers and other staff.

[1997 cS-12.2 s97](#)

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Powers of conseil scolaire

98. (1) The conseil scolaire has, with respect to a French first language school, the same powers as a board under section 76 and in addition, may make recommendations under subsection 95(3), section 100, and subsections 102(2), 102(8), 102(10) and 114(3).

(2) The conseil scolaire may, subject to the approval of the minister, establish procedures for and conduct elections to the conseil scolaire and the conseils d'ecole.

[1997 cS-12.2 s98](#)

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French first language schools

99. (1) The conseil scolaire may establish, maintain and operate a French first language school where the school provides programs or courses of study that satisfy the minimum requirements as approved by the minister.

(2) A French first language school shall receive an allocation of resources as approved by the minister.

[1997 cS-12.2 s99](#)

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Building funds

100. The minister shall pay out money voted by the Legislature for the construction, extension and equipment of French first language schools in accordance with the recommendations of the conseil scolaire.

[1997 cS-12.2 s100](#)

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Operational money

101. Money for the operation and maintenance of French first language schools, for the transportation of students, school supplies and equipment and other money allocated for the purpose of or connected with education in a French first language school shall be paid to the conseil scolaire in accordance with scales set out in a policy directive of the minister.

[1997 cS-12.2 s101](#)

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Conseil d'ecole - voting members

102. (1) There shall be a conseil d'ecole responsible for each French first language school.

(2) The number of elected members comprising a conseil d'ecole, not exceeding 9, and each school for which the conseil d'ecole is responsible, shall be set and may be changed by order of the minister on the recommendation of the conseil scolaire.

(3) Notwithstanding subsection (2), the first elected

(a) conseil d'ecole de Port au Port shall be responsible for each French first language school located in Mainland and Cape St. George;

(b) conseil d'ecole de l'ouest du Labrador shall be responsible for each French first language school located in Labrador City or Wabush;

(c) conseil d'ecole de l'est du Labrador shall be responsible for each French first language school located in Happy Valley - Goose Bay; and

(d) conseil d'ecole de St. John's shall be responsible for each French first language school located in St. John's .

(4) A parent of

(a) a student enrolled in a French first language school;

(b) a child registered to attend a French first language school; and

(c) a child who is eligible under this Act to be registered to attend a French first language school and who is not registered in another school

may vote in an election of members to a conseil d'ecole responsible for that school.

(5) A candidate for election to a conseil d'ecole shall be

(a) at least 18 years of age;

(b) a citizen of Canada or a lawful resident of Canada ;

(c) a resident of the province; and

(d) nominated by a person eligible to vote in an election of members to that conseil d'ecole.

(6) The principal of or a teacher in a French first language school is not eligible to be a candidate for election under this section to the conseil d'ecole responsible for that school.

(7) The director of the conseil scolaire is not eligible to be a candidate for election to a conseil d'ecole.

(8) Where fewer members are elected to a conseil d'ecole than the number set by order of the minister, the minister shall on the recommendation of the conseil scolaire or the interim conseil scolaire established under section 114 appoint the number necessary to satisfy the order.

(9) A member elected or appointed to a conseil d'ecole under this section shall be a voting member of the conseil d'ecole.

(10) The election of members to a conseil d'ecole shall be held at the same time as board elections are held under section 53 or at the time the minister directs on the recommendation of the conseil scolaire and the term of office of a member elected to a conseil d'ecole shall be the same as that of a trustee.

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Conseil d'école - non-voting members

103. (1) The principal of each school for which a conseil d'école is responsible shall be a member of the conseil d'école by virtue of his or her position.

(2) Not more than 2 teachers from each school for which a conseil d'école is responsible may be elected by the teachers of that school to the conseil d'école.

(3) Upon the approval of a conseil d'école responsible for a school where high school courses are taught, the students in those courses may elect a student to the conseil d'école.

(4) A member of a conseil d'école referred to in this section shall be a non-voting member of the conseil d'école.

[1997 cS-12.2 s103](#)

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Chairperson elected

104. A conseil d'école shall elect a chairperson from among its voting members.

[1997 cS-12.2 s104](#)

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Vacancy on a conseil d'école

105. A vacancy on a conseil d'école shall be filled in the same manner as the member being replaced and the replacement member shall serve only for the remainder of the term of office of the member being replaced but is eligible for re-election or re-appointment.

[1997 cS-12.2 s105](#)

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Purpose of a conseil d'école

106. The purpose of a conseil d'école is to develop, encourage and promote policies, practices and activities to enhance French language and culture, a French ambience, the quality of school programs and the levels of student achievement in a school for which it is responsible.

[1997 cS-12.2 s106](#)

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Functions of a conseil d'école

107. (1) The functions of a conseil d'école are, with respect to a school for which it is responsible, to

- (a) represent the cultural, linguistic and educational interests of the school;
- (b) advise the conseil scolaire on cultural and linguistic issues in the school;
- (c) advise the conseil scolaire on the quality of teaching and learning in the school;

- (d) facilitate parent and community involvement in teaching and learning in the school; and
- (e) advise the conseil scolaire on matters of concern to the school and the parents of students of the school.

(2) A conseil d'ecole shall operate in the French language and may as necessary communicate in the English language.

[1997 cS-12.2 s107](#)

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Duties of a conseil d'ecole

108. (1) A conseil d'ecole shall, with respect to a school for which it is responsible,

- (a) approve, for recommendation to the conseil scolaire, a plan for encouraging and promoting the French language and culture and a French ambience, and for improving teaching and learning in the school;
- (b) support and promote the plan approved by the conseil scolaire for encouraging and promoting the French language and culture and a French ambience, and for improving teaching and learning in the school;
- (c) consider information respecting performance standards in the school;
- (d) assist in the system of monitoring and evaluating standards in the school;
- (e) monitor the implementation of recommendations in reports on the performance of the school;
- (f) conduct meetings with parents on matters within its responsibility under this section;
- (g) ensure that the report on the school prepared under paragraph 24(3)(k) is available to parents and members of the public;
- (h) communicate concerns respecting the policies and practices of the conseil scolaire to the conseil scolaire; and
- (i) approve and monitor activities for raising funds for the school.

(2) A conseil d'ecole may, subject to the by-laws of the conseil scolaire, approve a levy, the payment of which is voluntary, once in a school year, instead of, or as a supplement to, fund raising activities for a school for which it is responsible.

(3) A conseil d'ecole shall operate in accordance with the by-laws of the conseil scolaire.

[1997 cS-12.2 s108](#)

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Protocol

109. (1) The conseil scolaire shall enter into a protocol with each conseil d'ecole which shall serve as a guide and reference for the operations of the conseil scolaire and the conseil d'ecole.

(2) The conseil scolaire may, with the consent of a conseil d'ecole, assign responsibilities to the conseil d'ecole in addition to those set out in sections 107 and 108.

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Directors

- 110.** (1) The conseil scolaire shall, subject to the prior written approval of the minister, appoint
- (a) a director; and
 - (b) an assistant director of finance and business administration.
- (2) A director and an assistant director shall be appointed for not more than a 5 year term and, following a satisfactory performance evaluation by the conseil scolaire, the appointment may be renewed.
- (3) The conseil scolaire may terminate the employment of a director or an assistant director, other than for cause, by giving him or her 3 months' written notice, and the conseil scolaire shall report the dismissal in writing to the minister immediately upon giving the notice.
- (4) Notwithstanding that the conseil scolaire may employ a director or an assistant director under this section, a contract of employment between the conseil scolaire and a director or an assistant director shall not be entered into without the prior written approval of that contract by the minister, and a contract of employment entered into without that approval shall be void.

[2012 c13 s7](#)

Sections not applicable

- 111.** (1) Section 8 does not apply to a student in a French first language school.
- (2) Sections 25 and 26 do not apply to a French first language school.
- (3) Sections 52 to 55, sections 58 and 59, sections 75 to 77, section 79, section 89, section 91 and section 120 do not apply to the conseil scolaire or a French first language school.
- (4) For the purpose of this Part, a reference in the other parts of this Act to
- (a) a board shall be considered to include a reference to the conseil scolaire;
 - (b) a district shall be considered to include a reference to the province; and
 - (c) a school shall be considered to include a reference to a French first language school

where to do so would not be inconsistent with this Part.

[1997 cS-12.2 s111](#)

Property

- 112.** (1) Title to all real and personal property used for the purpose of education at Ecole Ste. Anne and Ecole Notre Dame du Cap in the communities of Mainland and Cape St. George that were, on the coming into force of this Part, operated by a board as French first language schools shall be transferred to the conseil scolaire by the board or denominational authority having title.
- (2) Section 84 applies, with the necessary changes, to real and personal property used for the purpose of education in a French first language school, and to effect a transfer of property referred to in subsection (1).

[1997 cS-12.2 s112](#)

Conseil scolaire only to operate French first language school

113. After this Part comes into force, a board, other than the conseil scolaire, shall not operate a French first language school.

[1997 cS-12.2 s113](#)

Interim conseil scolaire

114. (1) The interim conseil scolaire is continued.

(2) Appointments to the interim conseil scolaire shall be made on the recommendation of the Federation des Parents Francophones de Terre-Neuve et du Labrador in accordance with the requirements of subsection 95(4).

(3) The interim conseil scolaire shall be dissolved upon the order of the minister on the recommendation of the conseil scolaire first elected under section 95.

(4) The interim conseil scolaire shall

(a) appoint a director as provided for in section 110;

(b) subject to the approval of the minister, establish procedures for the first election of the conseils d'ecole and the conseil scolaire;

(c) conduct the elections for the first conseils d'ecole at the same time as board elections are held or at the time the minister directs;

(d) conduct the election for the first conseil scolaire;

(e) notwithstanding subsection 102(2), recommend to the minister the number of members to be elected to each conseil d'ecole referred to in subsection 102(3);

(f) determine the organizational structure of the conseil scolaire;

(g) employ persons necessary to enable it and the conseil scolaire to carry out its responsibilities;

(h) establish financial and administrative procedures necessary to enable it and the conseil scolaire to carry out their responsibilities; and

(i) furnish and supply the interim conseil scolaire with adequate equipment and supplies to enable it and the conseil scolaire to carry out their mandate.

[1997 cS-12.2 s114](#)

Board's responsibility continued

115. Notwithstanding section 113, until the first conseil scolaire is elected under section 95, a board that operated a French first language school prior to the coming into force of this Part shall continue to operate the French first language school after this Part comes into force in the same manner as it was operated before this Part came into force.

[1997 cS-12.2 s115](#)

Transitional: Agreements and personnel of board

116. (1) All agreements, contracts, obligations and assessments made in relation to a French first language school and existing immediately before this Part comes into force shall continue.

(2) Where a board ceases to operate a French first language school, the conseil scolaire is the successor in law to the board in respect of an employment contract held by the board in respect of that school, and the conseil scolaire is substituted for the board in respect of that contract.

(3) When the board ceases to operate Ecole Ste. Anne and Ecole Notre Dame du Cap in the communities of Mainland and Cape St. George, the conseil scolaire is the successor in law to the board for those schools, and all agreements, contracts, debts, liabilities and other obligations of the board for those schools shall be assumed by the conseil scolaire and the conseil scolaire shall fulfil and satisfy all those agreements, contracts, debts, liabilities and other obligations.

(4) Where a board ceases to operate a French first language school, other than one referred to in subsection (3), the board shall enter into an agreement with the conseil scolaire in relation to all agreements, contracts, debts, liabilities and other obligations continued under subsection (1) except an employment contract referred to in subsection (2).

(5) Where there is a dispute as to the assumption of an agreement, contract, debt, liability or other obligation under this section the minister shall make an order determining the matter and that order shall be final.

[1997 cS-12.2 s116](#)

PART VI GENERAL

Powers of the minister

117. The minister may

- (a) prescribe books, materials, programs and courses of study for schools;
- (b) issue policy directives, including policy directives with respect to
 - (i) the establishment, organization and administration of public examinations and awards for students,
 - (ii) the allocation and distribution of money voted by the Legislature or otherwise available to a board for the purpose of education,
 - (iii) transportation of students to and from schools,
 - (iv) an agreement under section 84;
 - (v) special education,
 - (vi) student evaluation,
 - (vii) the evaluation of school programs and performance,
 - (viii) the professional development of teachers and employees of boards,
 - (viii.1) the payment of a fee for the cost of supplies provided to a student in a school other than a private school,
 - (ix) the payment of a fee by a student who possesses a student authorization under a Canada visitor visa and who has come to the province for the purpose of attending school, and

- (x) an agreement under section 51.1;
- (c) prescribe administrative functions and the manner in which they are to be performed by a board and in a school other than a private school;
- (d) require a school or class to be closed for a specified period;
- (e) authorize a board to employ an emergency supply for a specified period where the minister is satisfied that a teacher is not available;
- (f) extend the term of a board having jurisdiction for an area falling within a new district until the new district is established;
- (g) require a board to comply with an agreement entered into by the minister for educational purposes; and
- (h) do all those things that are necessary for the administration of this Act.

[1997 cS-12.2 s117](#); [2000 c32 s2](#); [2012 c13 s8](#)

Regulations

118. (1) The Lieutenant-Governor in Council may make regulations

- (a) respecting the establishment, maintenance, operation, organization, administration and delivery of education programs, facilities and services for students;
 - (b) respecting employment classifications, practices and procedures, and terms and conditions of employment of employees of boards;
 - (c) respecting the election and appointment of trustees;
 - (d) respecting the holding of religious observances in schools;
 - (e) defining a word or phrase used in this Act or changing the definition of a word or phrase defined in this Act;
 - (f) respecting a policy on employment equity referred to in paragraph 75(1)(f);
 - (f.1) respecting the application and modification of an agreement referred to in subsection 84(4) to a person who purchases property from a denominational authority, including the prescription of new or additional terms and conditions;
 - (f.2) prescribing terms and conditions applicable to a person who purchases property from a denominational authority in the circumstances described in subsection 84(4.3);
 - (g) respecting appeals; and
 - (h) generally to give effect to the purpose of this Act.
- (2) Regulations made under this Act may be made with retroactive effect.

[1997 cS-12.2 s118](#); [2007 c19 s2](#)

Penalty

119. (1) A person who violates a provision of this Act for which another section of this Act does not provide

a penalty, commits an offence and is liable on summary conviction

- (a) for a first offence, to a fine not exceeding \$1,000 or to imprisonment for a term not exceeding 3 months or to both a fine and imprisonment; and
- (b) for a subsequent offence, to a fine not exceeding \$3,000 or to imprisonment for a term not exceeding 6 months or to both a fine and imprisonment.

(2) A prosecution under this section shall be commenced within 2 years after the commission of the alleged offence.

[1997 cS-12.2 s119](#)

PART VII TRANSITIONAL, CONSEQUENTIAL, REPEAL AND COMMENCEMENT

Transitional

120. For the 1997 - 1998 school year, every school established, maintained and operated for a class of persons having rights under Term 17 under the former Act shall continue as a school established, maintained and operated for that class of persons, and a school operated jointly by agreement by 2 or more dissolved school boards under the former Act shall continue to be operated as far as practical in accordance with that agreement.

[1997 cS-12.2 s120](#)

DEC abolished

- 121.** (1) The Denomination Education Commission is abolished.
- (2) Money and other property of the commission are the property of the Crown.
- (3) The liabilities and obligations of the commission are the liabilities and obligations of the Crown.

[1997 cS-12.2 s121](#)

1996 cE-2.2 Rep.

- 122.** *The Education Act, 1996* is repealed.

RSN1990 cS-11 Amdt.

123. Paragraph 2(c) of the *School Boards' Association Act* is amended by striking out the year "1996" and substituting the year "1997".

[1997 cS-12.2 s123](#)

1996 cS-12.1 Rep.

- 124.** *The Schools Act, 1996* is repealed.

[1997 cS-12.2 s124](#)

RSN1990 cT-2 Amdt.

125. (1) Paragraph 2(f) of the *Teachers' Association Act* is amended by striking out the year "1996" and substituting the year "1997".

(2) Paragraph 2(g) of the Act is amended by striking out the year "1996" and substituting the year "1997".

(3) Subsection 6(1) of the Act is amended by striking out the year "1996" and substituting the year "1997".

(4) Paragraph 8(b) of the Act is amended by striking out the year "1996 " and substituting the year "1997 ".

[1997 cS-12.2 s125](#)

RSN1990 cT-3 Amdt.

126. (1) Paragraph 2(1)(k) of the *Teachers' Collective Bargaining Act* is amended by striking out the year "1996 " and substituting the year "1997".

(2) Paragraph 2(1)(l) of the Act is amended by striking out the year "1996" and substituting the year "1997".

(3) Subsection 2(2) of the Act is amended by striking out the year "1996" and substituting the year "1997 ".

(4) Section 30 of the Act is amended by striking out the year "1996" and substituting the year "1997".

[1997 cS-12.2 s126](#)

SN1991 c17 Amdt.

127. (1) Paragraph 2(1)(o) of the *Teachers' Pensions Act* is repealed and the following substituted:

- (o) "teacher" means a person holding a valid and subsisting certificate or grade or licence not lower than the emergency supply licence issued under the *Teacher Training Act*, who is, subject to the *Schools Act, 1997* appointed or employed by a board of directors or a school board to give instruction or to administer or supervise instructional services in a college or a school and includes
 - (i) a director or an assistant director, except the assistant director of finance and administration, appointed under section 79 of the *Schools Act, 1997* , and
 - (ii) every person who is considered a teacher under section 3;.

(2) Subsection 3(1) of the Act is repealed and the following substituted:

Application

3. (1) This Act applies to every teacher who

- (a) teaches
 - (i) in a school or a college and is paid from public funds allocated under the *Schools Act, 1997* , or is approved by the minister responsible for education for the purpose of this Act, or
 - (ii) in a school operated by the department under section 50 of the *Schools Act, 1997* ;
- (b) has similar qualifications approved by the minister responsible for education and is employed in a special school or in an institution in the province approved by the minister responsible for education for the purpose of this Act and receives his or her total remuneration directly from public funds

voted by the Legislature;

(c) has similar qualifications approved by the Teachers' Certification Committee established under the *Teacher Training Act* and is employed full time in the province to teach

(i) in a school,

(ii) in a private school,

(iii) in an institution for children with disabilities, or

(iv) a regular course for children with disabilities in a school,

where that school, institution or course has been approved under the *Schools Act, 1997* ; or

(d) is an administrative officer of the Newfoundland and Labrador Teacher's Association by virtue of the *Teachers' Association Act* , and who was before his or her appointment

(i) a teacher to whom this Act or the former Act applied, or

(ii) a public servant to whom the *Public Service Pensions Act, 1991* applied, and

is considered to be, during his or her term of office as the administrative officer, a teacher for the purpose of the pension plan.

(3) Subparagraph 13(2)(a)(ii) of the Act is amended by striking out the year "1996 " and substituting the year "1997 ".

(4) Paragraph 14(1)(b) of the Act is amended by striking out the year "1996 " and substituting the year "1997 ".

(5) Subsection 40(1) of the Act is amended by striking out the year "1996 " and substituting the year "1997 ".

[1997 cS-12.2 s127](#)

RSN1990 cT-1 Amdt.

128. (1) Subsection 5(3) of the *Teacher Training Act* is amended by striking out the year "1996" and substituting the year "1997".

(2) Paragraph 10(1)(f) of the Act is amended by striking out the year "1996" and substituting the year "1997".

[1997 cS-12.2 s128](#)

Commencement

129. This Act or a Part or a section of this Act shall come into force on a day to be proclaimed by the Lieutenant-Governor in Council. (In force - Jan. 9/98)

[1997 cS-12.2 s129](#)

Be it enacted by the Lieutenant-Governor and House of Assembly in Legislative Session convened, as follows:

Short title

1. This Act may be cited as the *Schools Act, 1997*.

[1997 cS-12.2 s1](#)

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Definitions

2. In this Act

- (a) "assistant director" means an assistant director appointed by a board under section 79 or the conseil scolaire under section 110;
- (b) "board" means a school board constituted under section 53 and shall, as the context requires, mean the board having jurisdiction over a school or a student attending a school in the district of that board;
- (c) "conseil scolaire" means the conseil scolaire referred to in section 94;
- (d) "department" means the department presided over by the minister;
- (e) "director" means a director appointed by a board under section 79 or the conseil scolaire under section 110;
- (f) "district" means a school district established under section 52;
- (g) "emergency supply", means a person who does not have a valid certificate or licence issued under the *Teacher Training Act* and who is employed to teach in a school;
- (h) "former Act" means the *Schools Act, 1996* ;
- (i) "French first language school" means a school established, maintained and operated by the conseil scolaire and includes a school operated by a board in accordance with section 23 of the *Canadian Charter of Rights and Freedoms* prior to the coming into force of Part V;
- (j) "medical practitioner" means a medical practitioner as defined in the *Medical Act* ;
- (k) "minister" means the minister appointed under the *Executive Council Act* to administer this Act;
- (l) "parent" means
 - (i) the father or mother of a child by birth,
 - (ii) a person who has adopted a child under the *Adoption of Children Act* ,
 - (iii) a person having lawful custody of a child, and
 - (iv) a person who has demonstrated a settled intention to treat a child as a child of his or her family, other than under an arrangement where the child is placed in a foster home for consideration by

a person having lawful custody of the child;

- (m) "principal" means a teacher designated as a principal or acting as a principal of a school and includes a person who is the head of a private school;
- (n) "private school" means a school established under section 43;
- (o) "provincial school" means a school established under section 50;
- (p) "school" means the body of school students that is organized as a unit for the purpose of education and includes the teachers and other staff members associated with the unit and the lands and premises used in connection with the unit;
- (q) "school council" means a council referred to in section 25;
- (r) "school day" means a day within a school year during which schools are operated in accordance with this Act and the regulations;
- (s) "school year" means a year commencing on July 1 in a calendar year and ending on June 30 in the following calendar year;
- (t) "student" means a person who is
 - (i) enrolled in a school, or
 - (ii) required under section 4 to attend school;
- (u) "student record" means a record of information in written or electronic form pertaining to a student;
- (v) "teacher" means a person who has a valid certificate or licence issued under the *Teacher Training Act* and, notwithstanding paragraph (g), includes emergency supply but does not include a director or an assistant director; and
- (w) "trustee" means a person who is elected or appointed to be a member of a board under section 53, 55 or 59 or elected to the conseil scolaire under section 95.

[1997 cS-12.2 s2; 2012 c13 s1](#)

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Labrador Inuit rights

2.1 This Act and regulations and orders made under this Act shall be read and applied in conjunction with the *Labrador Inuit Land Claims Agreement Act* and, where a provision of this Act, regulation or order made under this Act is inconsistent or conflicts with a provision, term or condition of the *Labrador Inuit Land Claims Agreement Act*, the provision, term or condition of the *Labrador Inuit Land Claims Agreement Act* shall have precedence over the provision of this Act.

[2004 cL-3.1 s62](#)

PART I STUDENTS

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Right of access to education

3. (1) A person

(a) who on December 31 in a school year is 5 years of age or older and younger than 21 years of age; and

(b) who is

(i) a Canadian citizen,

(ii) lawfully admitted to Canada for permanent residence,

(iii) a child of a Canadian citizen, or

(iv) a child of a person who is lawfully admitted to Canada for permanent or temporary residence,

is entitled in that year to an education program in accordance with this Act.

(2) A board may admit to an education program a person 21 years of age or older.

(3) Notwithstanding subsection (1), a board may admit to an education program a person who is not 5 years of age on December 31 in a school year where he or she

(a) was enrolled in kindergarten in another jurisdiction; and

(b) will be 5 years of age before the end of that school year.

[1997 cS-12.2 s3; 2012 c13 s2](#)

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Compulsory attendance

4. (1) A person who

(a) is entitled under subsection 3(1) to an education program in a school year;

(b) on December 31 in a school year is 6 years of age or older; and

(c) on September 1 in a school year is younger than 16 years of age

shall attend a school for the entire school year.

(2) A student enrolled with a board, unless otherwise permitted under this Act or by the board, shall attend the school that the board directs.

(3) A board shall admit to a school at the beginning of the school year all children who are under the jurisdiction of the board who are 5 years of age before January 1 in that school year.

(4) A board shall establish a kindergarten class in a school for children who are 5 years of age before January 1 in a school year.

[1997 cS-12.2 s4](#)

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Excused from attendance

5. Notwithstanding section 4, a student is excused from attending a school where the student,

- (a) is unable to attend school by reason of illness or other unavoidable cause and the teacher is advised of it, but the principal may require that the illness be certified by a medical practitioner;
- (b) has been expelled or suspended from school under this Act;
- (c) with the prior written approval of the director, is under instruction satisfactory to the director, at home or elsewhere, for a period specified by the director;
- (d) has the written permission of the principal to be absent from school for a reasonable period because, in the opinion of the principal and in accordance with the policy of the board, the student will be exposed to other experiences of significant educational and social value;
- (e) is absent for another reason that in the opinion of the principal does not constitute neglect or refusal to attend school under this Act; or
- (f) has successfully completed the requirements for senior high school graduation.

[1997 cS-12.2 s5](#)

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Home instruction

6. (1) A parent of a student may provide, at home or elsewhere, instruction for that student where the student is excused from attending a school under paragraph 5(c).

(2) A student who is excused from attending school under paragraph 5(c) shall be enrolled under section 15.

[1997 cS-12.2 s6](#)

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Home instruction approval

7. The period for which a student may be excused from attending a school under paragraph 5(c)

- (a) shall be valid for no longer than a school year; and
- (b) may be renewed upon application to the director each school year.

[1997 cS-12.2 s7](#)

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Instruction in English

8. Every student is entitled to receive instruction in English.

[1997 cS-12.2 s8](#)

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Instruction in French

9. Where an individual has rights under section 23 of the *Canadian Charter of Rights and Freedoms* to have his or her children receive instruction in French, the children of that individual shall receive that

instruction in accordance with those rights wherever in the province those rights apply.

[1997 cS-12.2 s9](#)

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Religious instruction & observances

10. (1) Where a student's parent requests in writing, the principal of a school shall excuse that student from participation in a course in religion or a religious observance conducted in the school.

(2) A parent of a student in a school may request of the school principal, giving the principal reasonable notice, that a religious observance be held in the school.

(3) A principal of a school shall, in accordance with the by-laws of the board, comply with a request of a parent with respect to a religious observance.

[1997 cS-12.2 s10](#)

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Conduct of students

11. Every student shall comply with school discipline and the rules of the school and shall carry out the learning activities within the prescribed curriculum.

[1997 cS-12.2 s11](#)

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Student records

12. (1) A student record shall be maintained for each student in the manner required by a policy directive of the minister.

(2) Except as provided in this section a student record may only be reviewed by

(a) the parent of the student; or

(b) the student, if the student is 19 years of age or older,

to whom that student record pertains.

(3) A parent or student, if the student is 19 years of age or older, shall review the student record at a time and with a person designated by the board and receive an explanation and interpretation of information in the student record from that person.

(4) A parent or student, if the student is 19 years of age or older, who is of the opinion that the student record contains inaccurate or incomplete information may request the principal to review the matter.

(5) A student record may be used by the principal and teachers of a school and by board employees to assist in the instruction of the student to whom that student record pertains.

(6) Without the written permission of the parent of a student, or the student if the student is 19 years of age or older,

(a) a student record shall not be admissible in evidence in a trial, inquiry, examination, hearing or other proceeding except to prove the establishment, maintenance, retention or transfer of that student

record; and

- (b) a person shall not be required to give evidence respecting the content of the student record in a trial, inquiry, examination, hearing or other proceeding.

(7) Notwithstanding subsections (1) to (6), a principal may use a student record to prepare information or a report

- (a) required under this Act; and

- (b) when requested in writing by a parent, or where a student is 19 years of age or older, the student or former student, for

- (i) an educational institution, or

- (ii) an application for employment.

(8) This section shall not prevent the use of a report based upon a student record by the principal of a school attended by that student, or the board, for the purpose of a disciplinary proceeding commenced by the principal respecting the conduct of that student or a prosecution of an offence under this Act.

(9) An action shall not lie against a person who contributes test results, evaluations or other information to a student record where he or she acted in good faith within the scope of his or her duties.

[1997 cS-12.2 s12](#)

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School fees

13. (1) A fee shall not be imposed upon a student or parent of a student with respect to the enrolment or attendance of that student or a program or course of study undertaken by that student in a school other than a private school.

- (2) Subsection (1) shall not apply to

- (a) a fee for the cost of supplies provided to a student;

- (b) a fee for other services provided to a student outside school hours; or

- (c) a fee payable by a student who possesses a student authorization under a Canadian visitor visa and who has come to the province for the purpose of attending school.

[1997 cS-12.2 s13](#)

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Failure to pay fee

14. (1) A person shall not be denied enrolment or attendance at a school or a program or course of study in a school, other than a private school, by reason only that a fee referred to in subsection 13(2) has not been paid.

(2) Subsection (1) shall not apply to a student who possesses a student authorization under a Canadian visitor visa and who has come to the province for the purpose of attending school.

[1997 cS-12.2 s14](#)

PART II

PARENTS

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Compulsory enrolment

15. (1) A parent of a child required to attend school under section 4 shall present that child for enrolment in a school.

(2) A parent of a student who moves his or her place of residence within the province or who takes up residence in the province shall present the student for enrolment in a school within one week of moving to his or her new residence or of taking up residence in the province.

[1997 cS-12.2 s15](#)

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Attendance

16. A parent shall ensure that his or her child attends school unless the child is excused from attendance under this Act.

[1997 cS-12.2 s16](#)

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Offence

17. (1) A parent who neglects or refuses to enrol his or her child in school or does not make every reasonable effort to ensure that his or her child attends school is guilty of an offence.

(2) A person who by threat, intimidation or otherwise prevents or attempts to prevent the attendance of a child at school is guilty of an offence.

(3) A conviction under this section does not bar further prosecution for the continued contravention of this section and each day's continued contravention shall constitute a separate offence.

(4) A person who is guilty of an offence under this section is liable on summary conviction to a fine not exceeding \$500 or to imprisonment for a term not exceeding 3 months or to both a fine and imprisonment.

[1997 cS-12.2 s17](#)

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Duty to report

18. (1) A person who has reason to believe that

- (a) a child who is required to be enrolled under section 15 is not enrolled; or
- (b) a child who is receiving instruction under section 6 is not receiving instruction in accordance with this Act,

shall report that belief to the director for the district in which that child resides.

(2) An action shall not lie against a person who makes a report or the director with respect to an action taken as a result of a report received under subsection (1) unless the report is made or the action is taken maliciously.

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Regular attendance

19. (1) A teacher, principal and director shall make every reasonable effort to secure the regular attendance of students at school.

(2) A principal who

(a) is satisfied that every reasonable effort has been made to have a student who has been absent from school return to regular attendance at school; and

(b) believes reasonably that the absence of a student constitutes a breach of this Act,

shall give a written report of the situation to the director.

(3) Where the director receives a report under subsection (2) and is satisfied that every reasonable effort has been made to have the student return to regular attendance and these efforts have been unsuccessful he or she shall refer that matter for investigation to the nearest detachment of the Royal Newfoundland Constabulary or of the Royal Canadian Mounted Police.

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Parent rights & duties

20. (1) A parent of a student attending a school is entitled to

(a) be informed of the student's attendance, behaviour and progress in that school; and

(b) have access on request to annual reports respecting the general effectiveness of education programs in that school and in the school district.

(2) A parent of a student attending school may request that a teacher or the director consult with him or her with respect to the student's education program and that teacher or director shall comply with that request unless the request is unreasonable in terms of frequency or other circumstances.

(3) A teacher or the director may request that a parent of a student consult with him or her with respect to that student's education program and that parent shall comply with that request.

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Liability for damage

21. (1) Where property of a board or an employee is destroyed, damaged or lost by the intentional or negligent act of a student, that student and his or her parents are individually and collectively liable to the board in respect of the act of that student.

(2) Subsection (1) does not apply to a parent of a student who is 19 years of age or older.

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Appeal

22. (1) Where a decision affects a student, the parent of the student or the student, if the student is 19 years of age or older, may appeal the decision

- (a) of a board employee employed in a school, to the principal and his or her decision may be appealed to the board;
- (b) of the principal, to the board; and
- (c) of a board employee not employed in a school, to the board,

and the board's decision on the appeal shall be final.

(2) An appeal under subsection (1) shall be commenced within 15 days from the date that the parent or student is informed of the decision.

(3) An appeal under this section shall be made in accordance with this Act and the by-laws of the board.

(4) A decision made under this section that is final or that is not appealed within the appeal period is binding upon the student, school, board and other persons affected by that decision.

(5) This section shall not apply to expulsion decisions under section 37.

[1997 cS-12.2 s22](#)

PART III SCHOOLS

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Application

23. (1) Sections 24 to 41 apply to a school other than a private school.

(2) Sections 25 and 26 do not apply to a provincial school or a school referred to in section 51.

[1997 cS-12.2 s23](#)

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Principal

24. (1) A board shall appoint a principal for every school in the district.

(2) A principal appointed under the former Act shall be considered to have been appointed under subsection (1) immediately upon the commencement of this Act.

(3) A principal of a school shall, subject to the direction of the board,

- (a) provide instructional leadership in the school;
- (b) ensure that the instruction provided by the teachers employed in the school is consistent with the courses of study and education programs prescribed or approved under this Act;

- (c) ensure that the evaluation and grading of students is conducted in accordance with generally accepted standards in education;
- (d) evaluate or provide for the evaluation of programs offered in the school;
- (e) manage the school;
- (f) maintain order and discipline in the school and on the school grounds and at those other activities that are determined by the principal, with the teachers of the school, to be school activities;
- (g) promote co-operation between the school and the communities that it serves;
- (h) provide for the placement of students in courses of study and education programs prescribed or approved under this Act;
- (i) provide for the promotion and advancement of students;
- (j) evaluate or provide for the evaluation of teachers employed in the school;
- (k) annually provide a report with respect to the school;
- (l) ensure a student record is established and maintained for each student in the school;
- (m) where the school is a French first language school, promote cultural identity and French language in the school; and
- (n) carry out other duties assigned by the board.

[1997 cS-12.2 s24](#)

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School councils

25. (1) A principal of a school shall establish a school council for the school.

(2) A school council shall, in accordance with the by-laws of the board, consist of no fewer than 8 members and no more than 15 members, including members under subsections (4) and (7), of whom

- (a) no fewer than 2 and no more than 4 shall be teachers elected by teachers from among teachers of the school;
- (b) no fewer than 3 and no more than 6 shall be parents elected by parents from among parents of students in the school; and
- (c) no fewer than 2 and no more than 4 shall be representatives of the community appointed by the school council members elected under paragraphs (a) and (b).

(3) Where a school council consists of more than 8 members, those members shall be elected and appointed in a manner consistent with the representation of members under paragraphs (2)(a), (b) and (c).

(4) The principal of a school shall be a member of the school council for that school by virtue of his or her position.

(5) A parent of a student in a school who is a teacher in that school shall not be eligible to be elected to the school council for that school under paragraph (2)(b).

(6) Notwithstanding subsections (2), (3) and (9), a school with fewer than 4 teachers, including the

principal, shall appoint all of its teachers to the school council.

(7) In addition to the requirements of subsection (2), in a school where senior high school courses are taught, at least one student who is elected by students in those courses shall be a member of the school council.

(8) A school council shall elect a chairperson from among its members but the principal is ineligible for election.

(9) A member of a school council elected or appointed under subsection (2) shall hold office for a period of 3 years and may be elected or appointed to that school council for one further term of 3 years.

(10) Notwithstanding subsection (9), of the members of a school council first elected or appointed under subsection (2),

(a) 1/3 or as near as may be possible shall serve for a term of one year;

(b) 1/3 or as near as may be possible shall serve for a term of 2 years; and

(c) the remaining members shall serve for a term of 3 years.

(11) Notwithstanding subsection (10), at all times, members of a school council shall be elected and appointed in a manner consistent with the representation of members under paragraphs (2)(a), (b) and (c).

(12) Notwithstanding subsections (9) and (10), a member of a school council shall continue to serve on that school council until he or she is replaced.

(13) A vacancy on the school council shall be filled in the same manner as the member being replaced and the replacement member shall serve only for the remainder of the term of office of the member being replaced and may be re-elected or re-appointed for one term of 3 years.

(14) A principal shall report in writing to the director not later than October 15 of the school year if he or she is unable to establish a school council, and the board, if satisfied that every reasonable effort has been made to establish the school council, may exempt the principal from the obligation to establish a school council or approve a school council for that school year whose composition differs from that required under subsection (2).

[1997 cS-12.2 s25](#)

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Functions of school councils

26. (1) The purpose of a school council is to develop, encourage and promote policies, practices and activities to enhance the quality of school programs and the levels of student achievement in the school.

(2) The functions of a school council are to

(a) represent the educational interests of the school;

(b) advise on the quality of teaching and learning in the school;

(c) facilitate parent and community involvement in teaching and learning in the school; and

(d) advise the board on matters of concern to the school and the community.

(3) The school council shall

(a) approve, for recommendation to the board, a plan for improving teaching and learning in the school;

- (b) support and promote the plan approved by the board for improving teaching and learning in the school;
- (c) approve and monitor activities for the raising of funds for the school;
- (d) consider information respecting performance standards in the school;
- (e) assist in the system of monitoring and evaluating standards in the school;
- (f) monitor the implementation of recommendations in reports on the performance of the school;
- (g) conduct meetings with parents and members of the community on matters within its responsibility under this section;
- (h) ensure that the report on the school prepared under paragraph 24(3)(k) is available to members of the public; and
- (i) communicate concerns respecting board policies and practices to the board.

(4) The school council may, subject to the by-laws of the board, approve a levy, the payment of which is voluntary, once in a school year, instead of, or as a supplement to, fund raising activities for the school.

(5) A school council may recommend that the principal of a school provide for a religious observance in the school.

(6) A board shall enter into a protocol with each school council which shall serve as a guide and reference for school council operations.

(7) The board may with the consent of the school council delegate responsibilities to the school council in addition to those set out in subsections (2) and (3).

(8) The school council shall operate in accordance with the by-laws of the board.

[1997 cS-12.2 s26](#)

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School opening

27. (1) A school shall open and close for the school year on the dates determined by the minister.

(2) The Lieutenant-Governor in Council may declare a day as a school holiday and a school shall observe that school holiday but a board shall specify all other holidays and vacation periods in a school year.

[1997 cS-12.2 s27](#)

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School hours

28. In each school day the minimum number of hours of instruction for students shall be

- (a) for kindergarten, 2.5 hours; and
- (b) for grades 1 to 12, 5 hours.

[2012 c13 s4](#)

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Extended school year

29. (1) The minister may direct that a school which, in his or her opinion, cannot be kept in continuous operation during a school year, be kept open during periods of vacation ordinarily observed by schools.

(2) Where a school is kept open under subsection (1) the provisions of this Act respecting attendance at school shall apply.

[1997 cS-12.2 s29](#)

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Closing

30. A board may authorize the closing of a school or class for a temporary period for a reason referred to in section 32.

[1997 cS-12.2 s30](#)

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Presence of teacher

31. Unless assigned to other duties by the principal or absent because of illness or other unavoidable cause, a teacher shall be in school during a period in the morning and in the afternoon immediately preceding the time set for the opening of school as required by the by-laws of the board.

[1997 cS-12.2 s31](#)

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Teaching days

32. A teacher in a school shall, for the purpose of determining payment of salary, be considered to have taught on a day or part of it when

- (a) the teacher having charge of the school closes it because of inclement weather, under a general authority given to him or her orally or in writing by or under the direction of the board;
- (b) the school is closed by order of the minister responsible for health by reason of disease being or threatening to become epidemic;
- (c) the school is closed by the board at any time after opening to enable repairs to be effected;
- (d) the school is declared uninhabitable by the board because of fire, storm, failure of the sewage system or other cause of a similar nature;
- (e) the teacher was unavoidably prevented from opening the school because of delay in construction of new buildings or the extension, remodelling or renovation of existing buildings and the minister is satisfied that no alternative accommodation was available;
- (f) the school was closed because of lack of heating or for another reason, where, in the opinion of the minister, the closing of the school could not have been avoided by the teacher; or
- (g) the teacher is required to act as a member of the board of arbitration established in accordance with

the collective agreement as defined in the *Teachers' Collective Bargaining Act*.

[1997 cS-12.2 s32](#)

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Responsibilities of teachers

33. A teacher's responsibilities shall include

- (a) providing instruction to students and encouraging and fostering student learning;
- (b) promoting goals and standards applicable to the provision of education approved under this Act;
- (c) teaching the courses of study and education programs that are prescribed or approved under this Act;
- (d) regularly evaluating students and periodically reporting the results of the evaluation to the student and his or her parent;
- (e) under the direction of the principal, maintaining and supervising order and discipline among the students while they are in the school or on the school grounds and while they are attending or participating in activities that are determined by the principal, with the teachers of the school, to be school activities;
- (f) where the teacher is employed in a French first language school, promoting cultural identity and French language in the school; and
- (g) carrying out those duties that are assigned to the teacher by the principal or the board.

[1997 cS-12.2 s33](#)

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School attendance record

34. A teacher shall keep a record of student attendance in a manner approved by the minister.

[2012 c13 s5](#)

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School attendance record as evidence

35. A copy of the school attendance record maintained in a school or, in the absence of a school attendance record, a certificate signed by the principal of the school respecting the attendance record of a student is, in the absence of evidence to the contrary, admissible in evidence in all courts in a prosecution for an offence under this Act and is proof of the information contained in the school attendance record or the certificate without proof of the signature or of the official capacity of the person who signed the school attendance record or certificate.

[2012 c13 s6](#)

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Suspension

36. (1) A teacher may suspend a student from a class period in accordance with the by-laws of the board.

(2) A teacher shall report a suspension of a student to the principal as soon as practicable, but in any event before the end of that school day.

(3) A principal may in accordance with the by-laws of the board suspend a student from

(a) one or more class periods;

(b) one or more courses or school programs;

(c) school;

(d) riding on a school bus; and

(e) participating in an activity sponsored or approved by the board.

(4) A principal may reinstate a student suspended by the principal or a teacher.

(5) A period of suspension shall be in accordance with the by-laws of the board and shall be no longer than 30 school days in total in a school year.

(6) Notwithstanding subsection (5), the director may approve the extension of a period of suspension if the principal can demonstrate that the presence of the suspended student in the school threatens the safety of board employees or students or frequently and seriously disrupts the classroom or the school.

(7) Where a period of suspension is extended under subsection (6), before reinstating the student, the director may require certification from a medical practitioner or other professional person whom the director considers appropriate, that the student no longer threatens the safety of board employees or students.

(8) Where a principal suspends a student under paragraph (3)(b), (c), (d) or (e), the principal shall immediately

(a) inform the student's parent of that suspension;

(b) report in writing to the student's parent and to the student all the circumstances respecting the suspension; and

(c) report in writing to the director all the circumstances respecting the suspension.

(9) Upon receiving a report from a principal under paragraph (8)(c), the director, within 3 school days of receiving the report, shall

(a) uphold the suspension;

(b) alter the terms of the suspension; or

(c) cancel the suspension.

(10) Where the suspension is cancelled under paragraph (9)(c) the director may strike the suspension from the student record.

[1997 cS-12.2 s36](#)

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Expulsion

37. (1) Where a student is persistently disobedient or defiant or conducts himself or herself in a manner that is likely to injuriously affect the proper conduct of the school, the principal shall

- (a) warn the student and record the date of and reason for the warning;
- (b) notify the student's parent, in writing, that the student has been warned;
- (c) send a copy of the notice referred to in paragraph (b) to the director; and
- (d) discuss with the student's parent the circumstances giving cause for the warning.

(2) Where, after a reasonable period and consultation with appropriate employees of the board, it is determined that the student has not made a satisfactory effort to reform, the principal shall report in writing to the director and recommend to the director that the student be expelled.

(3) Prior to the director making an order under subsection (4), the parent or the student, if the student is 19 years of age or older, may make representations to the director.

(4) Within 3 school days of receiving a report under subsection (2) the director shall consider the recommendation and shall order that the student be expelled or not be expelled.

(5) A board may re-admit a student who has been expelled.

(6) Where a student is expelled, the director shall notify the parent or, where the student is 19 years of age or older, the student, of the right to have the expulsion reviewed.

[1997 cS-12.2 s37](#)

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Re-admission

38. A student who has been expelled shall have the right to be re-admitted at the commencement of the next school year.

[1997 cS-12.2 s38](#)

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Review of expulsion

39. (1) Where a student has been expelled under section 37, a parent of the student or, if the student is 19 years of age or older, the student, may, within 15 days of the effective date of the expulsion, make a written request to the board that the expulsion be reviewed.

(2) Upon receiving a request under subsection (1) the board shall appoint 3 of its members as a review panel to investigate the circumstances of the expulsion and to make an order upholding or reversing the order to expel the student.

(3) The order of a review panel made under subsection (2) is binding upon the student, school, board and other persons affected by it.

[1997 cS-12.2 s39](#)

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Maintaining standards

40. (1) The minister shall establish a method of monitoring, evaluating, inspecting and reporting to ensure that each school maintains adequate program and school performance standards and may appoint persons to

evaluate and report on the performance of schools in the province.

(2) The minister shall provide public notice of a report received under subsection (1) and make the report available to the public.

[1997 cS-12.2 s40](#)

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Prohibition

41. A person shall not

- (a) disturb or interrupt the proceedings of a school, school council or board;
- (b) loiter or trespass in a school building or on property owned or used by a board; or
- (c) canvass, sell or offer to sell goods, services or merchandise to a teacher or a student in a school without the approval of the school council, and if there is no council, of the board.

[1997 cS-12.2 s41](#)

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Corporal punishment

42. A person shall not administer corporal punishment to a student in a school.

[1997 cS-12.2 s42](#)

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Private schools

43. (1) A person may, with the prior written permission of the minister, establish and operate a private school in the province.

(2) A person proposing to establish a private school shall provide to the minister

- (a) the name of the person who will own or operate the private school;
- (b) the purpose for which the private school is to be established;
- (c) a description of the classes and education programs to be taught in the private school; and
- (d) additional information that may be requested by the minister.

[1997 cS-12.2 s43](#)

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Private school requirements

44. Before permission to establish and operate a private school is given, a person shall satisfy the minister that

- (a) the buildings or premises to be used by the private school are appropriate for use as a school;

- (b) the courses of instruction to be offered in the private school are as prescribed or approved by the minister; and
- (c) the teachers to be employed in the private school hold a valid certificate or licence issued under the *Teacher Training Act*.

[1997 cS-12.2 s44](#)

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Private school inspection

45. (1) The minister may appoint a person to inspect a private school.

(2) A person acting under subsection (1) may enter a private school at all reasonable hours and conduct an inspection of the school and all records or documents relating to it.

[1997 cS-12.2 s45](#)

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Private school revocation

46. The minister may revoke or suspend his or her permission to establish or operate a private school where, in the opinion of the minister, that private school does not comply with the requirements of this Act.

[1997 cS-12.2 s46](#)

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Private school report

47. (1) The person in charge of a private school shall annually make a report to the minister furnishing the statistical information regarding enrolment, staff, courses of study and other information that the minister may require.

(2) A private school approved by the minister shall inform the minister before July 1 of each school year of an intention to vary or change a program in that school.

[1997 cS-12.2 s47](#)

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Private school operation

48. (1) A person shall establish and operate a private school in accordance with terms and conditions set by the minister.

(2) Where a private school is the only school available for students of particular grades, the sections of this Act relating to the responsibility of boards, parents, principals, teachers and students shall, with the necessary changes, apply as if it were not a private school.

(3) Students attending a private school shall be subject to provincial testing programs required by the minister or under this Act.

[1997 cS-12.2 s48](#)

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Offence

49. (1) A person who

- (a) establishes or operates a private school without the written permission of the minister;
- (b) operates a private school where permission of the minister has been revoked or suspended under section 46; or
- (c) contravenes a provision of this Act respecting private schools,

is guilty of an offence and liable on summary conviction to a fine not exceeding \$1,000 and in default of payment to imprisonment for a term not exceeding 3 months or to both a fine and imprisonment.

(2) A conviction under this section does not bar further prosecution for the continued contravention of this section and each day's continued contravention shall constitute a separate offence.

[1997 cS-12.2 s49](#)

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Provincial schools

50. (1) The minister may establish and operate a provincial school.

(2) A provincial school may be operated by the department separately, or by, with or for another department of government, a board or an organization approved by the minister.

(3) The cost of the establishment and operation of a provincial school shall be paid by money voted for that purpose by the Legislature.

[1997 cS-12.2 s50](#)

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Schools in institutions

51. (1) The minister may, where he or she considers it necessary, establish a school in a hospital or similar institution operated by or for the minister responsible for health and in a prison or similar institution operated by the minister responsible for justice.

(2) A school established under subsection (1) shall be administered as directed by the minister.

(3) The opinion of the minister as to what is a similar institution is conclusive for the purpose of this section.

[1997 cS-12.2 s51](#)

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Foreign schools

51.1 The minister may enter into an agreement providing for

- (a) recognition by the province of credits given by schools located outside Canada ;

- (b) the granting of a secondary school diploma by the province to persons who have attended a school located outside Canada ;
- (c) minimum standards for the operation of schools referred to in paragraphs (a) and (b) and the inspection of those schools; and
- (d) other matters necessary for the purpose of paragraphs (a) and (b).

[2000 c32 s1](#)

PART IV SCHOOL BOARDS

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School districts

52. (1) The province shall be divided into school districts as set by order of the Lieutenant-Governor in Council and the Lieutenant-Governor in Council may by order alter the boundaries or change the name of a school district.

(2) Where there is a dispute as to the boundaries of a school district, the minister shall determine those boundaries and that determination shall be final.

(3) An order made under subsection (1) shall be published in the *Gazette* .

[1997 cS-12.2 s52](#)

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School boards

53. (1) There shall be a school board elected for each district.

(2) Each board is a corporation.

(3) A board shall be elected at the time and in the manner directed by the minister subject to the approval of the Lieutenant-Governor in Council.

(4) The number of trustees to be elected for each district shall be set and may be changed by order of the Lieutenant-Governor in Council.

(5) Where fewer trustees are elected to a board than the number required by an order made under subsection (4), the Lieutenant-Governor in Council shall appoint those trustees necessary in order to satisfy the order.

(6) The trustees shall elect from among their members a chairperson and other officers, and the chairperson shall hold office until the next annual general meeting of the board.

(7) A person shall not be elected or serve as a trustee where that person

- (a) is an employee of the department unless prior written approval is given by the minister;
- (b) is an employee of the board; or
- (c) has a contract or interest in a contract with or for the board.

(8) The chairperson, or in his or her absence, the vice chairperson or a chairperson elected for that meeting shall preside over meetings of the board and of the executive committee and shall have the same right to vote as other trustees.

(9) Where a vote is tied, the question shall be considered as resolved in the negative.

[1997 cS-12.2 s53](#)

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District zones

54. For the purpose of ensuring that all parts of a district are represented by trustees, the board shall divide the district into 2 or more zones and shall define the boundaries of those zones.

[1997 cS-12.2 s54](#)

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Rep. by 2001 c14 s1

55. [Rep. by 2001 c14 s1]

[2001 c14 s1](#)

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Executive committee

56. (1) A board shall establish an executive committee composed of the chairperson of the board and other trustees elected to that committee by the trustees.

(2) The executive committee of a board shall act in the place of and manage the affairs of the board between regular meetings of the board and may, except where directed otherwise by the board and, in accordance with by-laws of the board, exercise the powers and duties of the board.

(3) A quorum of the executive committee shall be a majority of the members of that committee.

(4) All actions of the executive committee carried out under subsection (2) shall be reported to the board at the next regular meeting of the board.

[1997 cS-12.2 s56](#)

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Dissolution of boards

57. (1) The Lieutenant-Governor in Council may by order dissolve a board on a specified date and that board shall be considered to be dissolved on that date.

(2) Where a board is dissolved under subsection (1) and there is no successor board, all debts and liabilities of the board shall be paid and discharged before that dissolution.

(3) Where a board is dissolved under this section and there is no successor board and all debts and liabilities of the dissolved board are paid and discharged, surplus funds and real and personal property vested in or used by that board shall, subject to an agreement referred to in section 84, vest in the Crown.

(4) Where a board is dissolved under this section and there is no successor board and there is a dispute as to the disposition of property vested in or used by the dissolved board, the minister may, subject to an agreement referred to in section 84, direct the disposition or dispose of the property.

(5) Where a board is dissolved under subsection (1) and there is a successor board, the successor board is the successor in law of the dissolved board and

- (a) all agreements, contracts, debts, liabilities and other obligations of that dissolved school board are assumed by the successor board and the successor board shall fulfil and satisfy all those agreements, contracts, debts, liabilities and other obligations;
- (b) the successor board is substituted for the dissolved school board in respect of an employment contract held by the dissolved school board on its dissolution; and
- (c) title to all real and personal property of a dissolved school board is vested in the successor board, and, for all real and personal property held or used for the purpose of education by a dissolved school board, the successor board is substituted for the dissolved school board in respect of an entitlement, interest, instrument, deed, contract, agreement or other document held by the dissolved school board with respect to that property.

(6) Where there is a dispute as to which board is the successor to a board that has been dissolved and where there is a dispute as to which board is the successor board respecting the

- (a) assumption of an agreement, contract, debt, liability or other obligation under paragraph (5)(a); or
- (b) substitution for the dissolved school board with respect to an employment contract under paragraph (5)(b),

the minister shall make an order determining the matter and that order shall be final.

[2004 c25 s1](#)

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Vacancy

58. Where a vacancy of a trustee position exists or where a trustee no longer resides in the zone for which he or she was elected, or the trustee absents himself or herself from 3 consecutive meetings of the board without good reason the board shall inform the minister who shall declare that position vacant.

[1997 cS-12.2 s58](#)

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Replacement of trustees

59. (1) Where

- (a) a new district is created;
- (b) all the trustees of a board are dismissed;
- (c) a trustee position is vacant; or
- (d) a board does not have a sufficient number of trustees for a quorum,

the Lieutenant-Governor in Council shall

(e) appoint a board or a trustee; or

(f) order that there be an election of a board or of a trustee.

(2) Section 53 applies, with the necessary changes, to the appointment or election of a board or of a trustee under this section.

[1997 cS-12.2 s59](#)

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Board to adopt constitution

60. (1) The board first elected or appointed for a school district shall adopt, not later than 6 months after its appointment or election, a constitution regarding its duties and responsibilities but the constitution and an amendment to the constitution shall not come into force until approved by the minister.

(2) The constitution under subsection (1) shall include provisions respecting

(a) the appointment or selection of a chairperson and other officers of the board;

(b) the date of the annual meeting of the board;

(c) a description of the zones established under section 54;

(d) the appointment or selection of committees considered necessary to the proper functioning of the board; and

(e) duties of the officers and committees of the board additional to those duties specified in this Act.

(3) Unless otherwise provided by the constitution of the board, a majority of the trustees of the board constitutes a quorum.

[1997 cS-12.2 s60](#)

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Closed meeting

61. A meeting of a board is open to the public unless it is declared by vote of the trustees to be a closed meeting from which members of the public shall be excluded.

[1997 cS-12.2 s61](#)

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Minutes

62. (1) A board and the executive committee of that board shall keep minutes of its proceedings and the minutes shall at all reasonable times be available for inspection by an official of the department designated by the minister, and on request, to members of the public.

(2) Notwithstanding subsection (1), the minutes of a closed meeting shall not be available to the public.

[1997 cS-12.2 s62](#)

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Meetings and business

63. (1) A board shall hold an annual meeting on the date specified in its by-laws, and in any event not later than November 30.

(2) A board shall hold meetings to transact the business of the board not less than once every 3 months.

(3) A special meeting of the board may be held at the request of the chairperson, and shall be called when a written application, specifying the purpose of the proposed meeting, is made to the chairperson by a majority of the trustees and business shall not be transacted at a special meeting other than business for which the meeting was called.

(4) A trustee shall be given at least 4 days' notice, in writing, of the business to be transacted at a regular meeting.

(5) Members of a board shall serve without remuneration but may be reimbursed by a board at a rate set in a policy directive of the minister for travelling and other expenses reasonably incurred in connection with the work of the board.

[1997 cS-12.2 s63](#)

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Execution of documents

64. (1) The board shall by resolution, certified by the chairperson or other person approved by the board, determine those trustees who shall execute all deeds and other documents on behalf of the board.

(2) The board shall by resolution, certified by the chairperson or other person approved by the board, appoint a person or persons as signing officers with respect to the signing of cheques and other daily transactions of the board.

[1997 cS-12.2 s64](#)

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Annual budget

65. (1) A board shall at a date that the minister may determine in each year submit to the minister a copy of its annual budget for the next fiscal year.

(2) The annual budget submitted to the minister under subsection (1) shall provide

(a) detailed estimates of operating expenses of the board for the next fiscal year;

(b) detailed estimates of revenue of the board for the next fiscal year from all sources;

(c) estimates of a surplus projected to accrue to the board in the current fiscal year; and

(d) other information that may be required by the minister.

(3) A board shall not, in a fiscal year, incur, contract for or become liable for an expenditure or debt

(a) unless the annual fiscal budget for that fiscal year has first been approved, in writing, by the minister; and

- (b) that is more than the estimated expenditures or debt set out in its annual budget or substantially changes the manner in which an expenditure will be made, except with the prior written approval of the minister.

(4) The minister may appoint a person to examine the books of account and other financial records of a board and, at the request of that person, the board shall provide him or her with its books of account and other financial records and an officer or employee of the board shall answer questions pertaining to them and provide other assistance that the person may request.

[1997 cS-12.2 s65; 2001 c14 s2](#)

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Accounts and audits

66. (1) A board shall keep an accurate record of all receipts and expenditures and ensure that all funds received from the Crown are expended only for the purpose for which they are provided and prepare and submit to the minister at the end of each school year a detailed statement of its accounts audited by a person licensed under the *Public Accountancy Act* in the form and at a time that the minister may require.

(2) The auditor shall, during the course of each audit, inspect the bonds entered into with respect to the board and report on their sufficiency to the minister.

(3) Where a board does not transmit to the minister the statement of accounts referred to in subsection (1), the minister may withhold further payment of funds until statements of account satisfactory to the minister have been provided.

[1997 cS-12.2 s66](#)

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Audit directed by minister

67. (1) Where an audit under section 66 has not been conducted to the satisfaction of the minister, the minister may direct in writing that the accounts of that board be audited by an auditor designated by the minister, and that auditor shall report on his or her audit to the minister.

(2) The board shall, when requested, provide to a person conducting an audit under section 66 or subsection (1), all account books, accounts, supporting documents and other information necessary to complete the audit.

(3) A trustee who refuses to supply a book, account or information in his or her possession which is necessary for an audit may be removed from office by the Lieutenant-Governor in Council.

(4) Where an audit shows that funds are not being expended in accordance with this Act, the minister may withhold further payments of funds until this Act is complied with.

[1997 cS-12.2 s67](#)

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Conflict of interest

68. (1) A trustee has a conflict of interest and shall not vote or speak on a matter before the board or a committee of the board where

- (a) the trustee or a relative of the trustee has a direct or indirect monetary or other interest in the matter;

or

- (b) the trustee is an officer, employee or agent of an incorporated or unincorporated company, or other association of persons, that has a direct or indirect monetary or other interest in that matter.

(2) A trustee with a conflict of interest under subsection (1) shall not enter into a contract with the board.

(3) For the purpose of subsection (1) a relative of a trustee means a father, mother, spouse, sister, brother, child, step-child, ward, mother-in-law, father-in-law, sister-in-law or brother-in-law of the trustee.

(4) In order for an interest to be considered as one falling within the prohibition set out in subsection (1) it shall be an interest distinct from an interest held in common with the electors generally in the district of the board.

(5) Notwithstanding subsection (1), a trustee does not have a conflict of interest by reason only that a relative of the trustee is enrolled in a school affected by a board decision.

(6) For the purpose of subsection (5), a relative of a trustee means, in addition to the persons referred to in subsection (3), a grandchild, niece or nephew of the trustee.

[1997 cS-12.2 s68; 1999 c34 s1](#)

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Disclosure

69. (1) Where a trustee has a conflict of interest under section 68, the trustee shall state that he or she has that conflict of interest and its nature at the beginning of discussion on the matter in which he or she has that conflict of interest.

(2) Where the trustee who declares a conflict of interest under subsection (1) is the chairperson he or she shall vacate the chair.

(3) A trustee who declares a conflict of interest under subsection (1) shall leave the meeting while the matter on which he or she has a conflict of interest is being discussed.

(4) A trustee who is in doubt as to whether or not he or she has a conflict of interest under section 68 shall disclose that interest to the board and the board may decide the question by majority vote and its decision on the matter is final.

[1997 cS-12.2 s69](#)

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Proceeding voidable

70. The failure of a person to comply with the requirements of section 69 does not invalidate a proceeding of the board, but the proceeding is voidable by the board before the expiration of 2 years from the date of the passing of the resolution or by-law in respect of which the failure occurred, unless to invalidate the proceeding would adversely affect the rights of another person who acquired those rights under the proceeding and who acted in good faith and without actual notice of the failure to comply with section 69.

[1997 cS-12.2 s70](#)

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Application to Trial Division

71. (1) A person who resides in the district may, within 6 weeks of learning that a trustee may have contravened section 68, apply to a judge of the Trial Division to determine if the trustee has contravened section 68.

(2) The applicant shall state the grounds for alleging a contravention of section 68 by the trustee.

(3) An application shall not be brought under subsection (1) after the expiration of 2 years from the time at which the contravention is alleged to have occurred.

[1997 cS-12.2 s71](#)

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Conflict of interest remedy

72. (1) Where a judge of the Trial Division determines that a trustee contravened section 68, the judge

(a) shall, in the case of a person currently holding office as a trustee, declare the office of the trustee vacant; and

(b) may, where the contravention has resulted in financial gain to the trustee, require the trustee to make restitution to the person suffering the loss or, where that person is not readily ascertainable, to the board of which he or she is a trustee or former trustee.

(2) Where a judge of the Trial Division determines that a trustee contravened section 68, but was acting in good faith, the trustee shall not have his or her office declared vacant under paragraph (1)(a).

[1997 cS-12.2 s72](#)

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Irregular management of affairs

73. (1) Where the minister is satisfied that the affairs of a board are managed in an irregular, improper or improvident manner, the minister may by order in writing direct the board or a trustee of the board to take action that the minister considers necessary or advisable in the circumstances.

(2) Where satisfied that the affairs of a board are managed in an irregular, improper or improvident manner the Lieutenant-Governor in Council may dismiss one or more of the trustees of the board.

[1997 cS-12.2 s73](#)

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By-laws

74. (1) A board shall adopt by-laws respecting

(a) the procedure for an appeal under section 22;

(b) the periods during which teachers are required to be in school under section 31;

(c) the suspension of students under section 36;

(d) the calling and conduct of meetings of the board and the administration and business of the board; and

(e) the imposition of a levy by a school council.

(2) A board may make by-laws that are not inconsistent with this Act and that are necessary or desirable to carry out its powers and duties under this Act.

(3) A by-law of a board shall not come into force until approved by the minister.

[1997 cS-12.2 s74](#)

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Duties of boards

75. (1) A board shall

- (a) organize and administer primary, elementary and secondary education within the district;
- (b) provide for the instruction of students either by the establishment of a program in its schools or by making an arrangement with another board or with another educational body in Canada ;
- (c) determine policy for the effective operation of primary, elementary and secondary schools in the district;
- (d) ensure that policies and guidelines issued by the minister relating to special education for students are followed in schools under its jurisdiction;
- (e) ensure adequate supervision of all students enrolled in its schools during the period for which the board is responsible for those students;
- (f) develop a policy on employment equity and a plan for implementing the policy;
- (g) appoint and dismiss employees;
- (h) appoint and assign duties of teachers;
- (i) adopt personnel policies which shall follow the personnel administration procedures of the government of the province, with the necessary changes, unless other policies are approved, in writing, by the minister;
- (j) formulate policies for evaluating employees;
- (k) arrange for the bonding of the assistant director of finance and administration and other persons employed by the board whose duties include the collecting, receiving or depositing of money belonging to the board;
- (l) purchase or otherwise acquire, subject to the prior written approval of the minister, real property that it requires;
- (m) ensure that those programs or courses of study, including courses in religious education, and the materials prescribed or approved by the minister are followed in the schools under its control;
- (n) ensure that each school within its district maintains adequate program and performance standards;
- (o) establish policies for student evaluation and student promotion;
- (p) establish priorities for school construction, maintenance and repair and make recommendations to the minister;

- (q) make known to the public and enlist the support of the public for board policies and programs;
- (r) transmit to the minister all records and returns required by this Act and other reports and returns that the minister may require;
- (s) where the board considers it necessary, arrange for a system of transportation of students to and from schools;
- (t) where arrangements are made by it for the transportation of students, ensure that all vehicles engaged in carrying students to and from school are
 - (i) in good mechanical condition,
 - (ii) have adequate liability insurance, and
 - (iii) that an appropriate bus safety program is offered to students who are transported by bus;
- (u) insure and keep insured all its buildings and equipment and obtain insurance indemnifying it against liability in respect of a claim for damages or personal injury;
- (v) admit, at all reasonable times and subject to the terms of an agreement between it and the Memorial University of Newfoundland, a student enrolled in the Faculty of Education or School of Physical Education and Athletics at that University to a school under its control for the purpose of observation and the practice of teaching;
- (w) admit, at all reasonable times and subject to the terms of an agreement between it and a college or institute, a student enrolled in a training program for student assistants, to a school under its control for the purpose of observation and activities associated with a work term;
- (x) organize and administer a school in an institution, where directed to do so by the minister;
- (y) comply with a policy directive of the minister; and
- (z) immediately inform the minister in writing of a vacancy in the position of director or assistant director.

(2) Notwithstanding paragraph (1)(g), an emergency supply shall not be employed or appointed to teach without the permission of the minister.

(3) A board shall be responsible to the minister for the expenditure of public funds, the conduct of programs of instruction, and evaluation required by the minister and for the maintenance of adequate program and performance standards in schools in the district.

[1997 cS-12.2 s75](#)

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Powers of boards

76. (1) A board may

- (a) employ persons that the board considers necessary for its operations and to carry out its objects;
- (b) enter into agreements for the purpose of carrying out its functions under this Act;
- (c) permit a school building under its control to be used outside of school hours, where this does not interfere with the regular conduct of the school;

- (d) assess a person or group a fee for use of a school under paragraph (c);
- (e) require a student, believed by a teacher to be suffering from a communicable disease or a physical or mental condition which might endanger an employee of the board or other students, to be examined by a medical practitioner or other professional person appointed or approved by the board and, upon the recommendation of the medical practitioner or that other professional person, exclude that student from school until a certificate acceptable to the board is obtained from a medical practitioner or that other professional person permitting that student to return to school, but an exclusion or extension of an exclusion shall be reviewed by the board within 25 school days;
- (f) by notice, in writing, require an employee or other person to undergo a physical examination by a medical practitioner appointed or approved by the board or a psychological examination by 2 medical practitioners or 2 psychologists registered under the *Psychologists Act* and to submit a certificate acceptable to the board signed by the medical practitioners or psychologists setting out the conclusions regarding the physical or mental health of that employee or person;
- (g) summarily dismiss an employee or other person who within 14 days from the date of receiving a notice under paragraph (f) has not made a reasonable attempt to obtain the examination;
- (h) where a certificate submitted to a board under paragraph (f) shows that an employee or other person's physical or mental health would be injurious to an employee of the board or the students, direct the employee or other person to take sick leave or other earned leave or, where he or she has no sick leave or other earned leave or the sick leave or other earned leave is exhausted, require the employee or other person to take unpaid leave;
- (i) suspend from work, with or without pay, an employee or other person who is charged with an offence that in the opinion of the board would make that employee or other person unsuitable to perform his or her duties;
- (j) provide, subject to the written permission of the parent of the student concerned and in conjunction with the appropriate officials responsible for traffic control in the area, a system of school patrols in which a student may assist in the control of motor vehicle traffic on highways or elsewhere so far as the traffic may affect a student going to or from the school;
- (k) raise money, subject to the prior written approval of the minister, upon its corporate credit and for the purpose of the board;
- (l) sell or lease property for the purpose of the board, subject to the prior written approval of the minister;
- (m) levy a fee for the transportation of students; and
- (n) become a member of a provincial association of school boards and pay a required membership fee.

(2) Notwithstanding section 75 or subsection (1) of this section, a board may close a school only after the parents of students affected have been given an opportunity to make representations to the board.

[1997 cS-12.2 s76](#)

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Additional resources for certain schools

77. (1) A board may establish, maintain and operate a school where the school provides programs or courses of study that satisfy the minimum requirements as approved by the minister.

(2) The minister shall determine and, by order, specify a school that is a small school, and the grades which may be taught in that school, in which the requirements of subsection (1) cannot be met, but the school

must be maintained and operated because of isolation or because the students cannot reasonably be accommodated in another school.

(3) A school specified in an order under subsection (2) shall receive an allocation of resources, as approved by the minister, additional to the allocation of resources provided for schools not specified in the order under subsection (2).

(4) The board shall ensure that an additional allocation received under subsection (3) for a school is used in that school.

[1997 cS-12.2 s77](#)

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Zoning

78. (1) A board may establish an attendance zone for each school within its district and each student who resides in that zone shall attend a school specified for that attendance zone.

(2) Notwithstanding subsection (1), a board may permit a student who resides in one attendance zone to attend a school in another attendance zone.

[1997 cS-12.2 s78](#)

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Directors

79. (1) A board shall, subject to the prior written approval of the minister, appoint one director and no more than 3 assistant directors, unless a larger number is approved by the minister, one of whom shall be the assistant director of finance and business administration.

(2) A director and an assistant director shall be appointed for not more than a 5 year term and, following a satisfactory performance evaluation by the board, the appointment may be renewed.

(3) A board may terminate the employment of a director or an assistant director, other than for cause, by giving him or her 3 months' written notice, and the board shall report the dismissal in writing to the minister immediately upon giving the notice.

(4) Notwithstanding that a board may employ a director or an assistant director under this section, a contract of employment between a board and a director or an assistant director shall not be entered into without the prior written approval of that contract by the minister, and a contract of employment entered into without that approval shall be void.

[1997 cS-12.2 s79; 2001 c14 s3](#)

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Director duties

80. (1) A director shall, under the direction of the board,

- (a) supervise and direct the staff employed by the board;
- (b) administer, supervise and evaluate all education programs and services for the operation of schools in the district;
- (c) recruit and recommend for appointment employees and, subject to the approval of the board, assign

them to positions and duties;

- (d) determine in accordance with this Act the school that a student shall attend;
 - (e) recommend the promotion, transfer and termination of employment of employees of the board;
 - (f) develop and implement a program of supervision and in-service training for employees of the board;
 - (g) supervise all schools, property, teachers, and other employees of the board and visit each school as frequently as feasible and at least once in each school year;
 - (h) determine the programs for primary, elementary and secondary school grades and develop policies for promoting students;
 - (i) provide leadership in evaluating and improving the education program in the district;
 - (j) advise the board on planning for the extension, construction, renovation and repair of buildings;
 - (k) assist the board in preparing its annual budget;
 - (l) facilitate communication between the board and employees;
 - (m) attend meetings and institutes as required by the minister;
 - (n) as required by the minister, make annual reports to the board and to the department on the education program in the board's district;
 - (o) be, by virtue of his or her position, a non-voting member of all board committees and attend all meetings of the board and the executive committee, except those meetings or parts of meetings during which matters related directly to the employment of the director are to be discussed;
 - (p) where the director is employed by the conseil scolaire, promote cultural identity and French language in French first language schools; and
 - (q) perform other duties required by the board and under this Act.
- (2) An assistant director shall report to the director.

[1997 cS-12.2 s80](#)

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Suspension by director

81. (1) Where a director is of the opinion that the presence of an employee or other person is an immediate threat to the welfare of students or an employee of the board, the director may suspend that employee or other person, with or without pay, from the performance of his or her duties.

(2) The director shall immediately, in writing, notify the board of a suspension under subsection (1).

(3) Where the board receives a notification under subsection (2), it shall, as soon as is practicable, confirm, vary or revoke the suspension of the employee or other person and shall, where the suspension is confirmed or continued, determine if the suspension shall be with or without pay.

[1997 cS-12.2 s81](#)

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Medical certificate

82. (1) An employee or other person who has been dismissed under paragraph 76(1)(g) shall not accept a position with another board until a certificate of a medical practitioner or a psychologist registered under the *Psychologists Act* as to his or her health, has been submitted to, and considered acceptable by the board.

(2) An employee or other person required to take leave under paragraph 76(1)(h) shall not return to work until he or she delivers to the board a certificate acceptable to the board signed by a medical practitioner in respect of his or her physical health, or by 2 medical practitioners or 2 psychologists registered under the *Psychologists Act* as to his or her mental health, stating that he or she has recovered sufficiently to return to work.

[1997 cS-12.2 s82](#)

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Contracts to be in writing

83. The terms and conditions of a contract of employment between a board and an employee shall be in writing and consistent with this Act.

[1997 cS-12.2 s83](#)

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Property

84. (1) All real and personal property used for the purpose of education by a board immediately before this section comes into force shall continue to be used for the purpose of education by the board.

(2) The use of all real and personal property by a board under subsection (1) shall be without compensation to the person or association of persons in which the title to the property is vested.

(3) Where title to property used for the purpose of education by a board is vested in a denominational authority immediately before this section comes into force, and no property, or funds for the purchase, construction or maintenance of the property, have been provided by a religious denomination, that denominational authority shall transfer that title to the board, and the cost of the transfer of title shall be paid by the board.

(4) Where property used for the purpose of education by a board, or funds for the purchase, construction or maintenance of that property, have been provided by a religious denomination and title to the property is vested in a denominational authority, that denominational authority shall, as soon as practicable, enter into an agreement with the board relating to

- (a) all matters necessary for the board to manage, maintain, use, equip and improve the property while the property is required by the board for the purpose of education; and
- (b) disposition of the property, where the board no longer requires the property for an educational purpose.

(4.1) A denominational authority that holds title to property that is being used by a board for the purpose of education and intends to convey that property to a person, other than a board or another denominational authority, shall first

- (a) provide to the board all financial records relating to the provision of property or funds by the denominational authority for the purchase, construction or improvement of the property; and
- (b) enter into an agreement with the board under subsection (4), where the denominational authority has not already done so.

(4.2) Where a denominational authority fails to comply with the requirements of paragraph (4.1)(a), there shall be no final disposition of the property notwithstanding that it is no longer required by the board for the purpose of education, except where the minister has dispensed with this requirement.

(4.3) Where a denominational authority has conveyed property to a person, other than a board or a denominational authority without first satisfying the requirement of paragraph (4.1)(b), the purchaser of the property and a subsequent purchaser shall be bound by terms and conditions specified in the regulations.

(4.4) Where an agreement under subsection 84(4) has been entered into, a person who purchases property from a denominational authority under a conveyance referred to in subsection (4.1), including a subsequent purchaser, shall be bound by the terms and conditions of that agreement as if it were the denominational authority except as otherwise provided in the regulations, whether or not the agreement has been assigned or transferred by the denominational authority and notwithstanding any agreement, declaration, waiver, representation or statement to the contrary made in association with the conveyance.

(5) Where property used for the purpose of education by a board, or funds for the purchase, construction or maintenance of that property, have been provided by a religious denomination and title to the property is vested in a board, that board shall, as soon as practicable, enter into an agreement with the denominational authority that held title prior to the vesting of title in a school board relating to the disposition of the property, where the board no longer requires the property for an educational purpose.

(6) The minister shall establish a procedure for the resolution of an agreement

(a) if an agreement referred to in subsection (4) has not been entered into within 12 months of the coming into force of this section; and

(b) if an agreement referred to in subsection (5) has not been entered into as soon as practicable.

(7) An agreement under this section is of no effect until it is approved in writing by the minister.

(8) In this section and sections 86 and 90 "denominational authority" means

(a) an integrating denomination or a person, an organization or a corporation on behalf of an integrating denomination under article 12 of the Document of Integration entered into by the Diocesan Synod of Newfoundland, the Newfoundland Conference of the United Church of Canada, the Territorial Commander for the Salvation Army for Canada and the Newfoundland Presbytery of the Presbyterian Church in Canada;

(b) a Roman Catholic Episcopal corporation;

(c) the Pentecostal Assemblies of Newfoundland ; and

(d) includes another denominational group holding title to property used for the purpose of education.

[1997 cS-12.2 s84; 2007 c19 s1](#)

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Property held by board

85. All property held by a board is considered to be held for the purpose of this Act.

[1997 cS-12.2 s85](#)

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Prohibition

86. (1) A board shall not construct or extend a school where the board does not have title to the land upon which that construction or extension will occur.

(2) Notwithstanding subsection (1) and section 88, a board may construct or extend a school vested in a denominational authority in accordance with an agreement entered into under section 84.

[1997 cS-12.2 s86](#)

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Acquisition of property

87. (1) A board may acquire by gift, lease or purchase, real and personal property.

(2) The acquisition of real property referred to in subsection (1) shall first be approved, in writing, by the minister and approved for the intended use by all necessary approving agencies.

(3) The title to all real property acquired after the commencement of this Act shall be vested in the board in whose district that real property is located.

[1997 cS-12.2 s87](#)

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Shared facilities

88. (1) A board may, with the approval of the minister, enter into an agreement with a person or group of persons for the construction and shared use of a school building or a building to be primarily used as a school.

(2) Unless otherwise approved in writing by the minister, the title to all real property acquired under subsection (1) shall be vested in the board in whose district that real property is located.

[1997 cS-12.2 s88](#)

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Building funds

89. (1) The minister shall provide for the construction, renovation, extension and equipment of schools and school board offices out of money voted by the Legislature.

(2) Subject to the prior written approval of the minister, a board may use funds provided to it under section 91 for renovation and extension of schools and school board offices.

[1997 cS-12.2 s89](#)

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Title to school land

90. (1) Money shall not be paid out for the construction or extension of a school in a district where the board for that district does not have title to the land on which that construction or extension is to occur.

(2) Notwithstanding subsection (1), money may be paid out for the construction or extension of a school, where title to the land is vested in a denominational authority, in accordance with an agreement entered into under section 84.

- (3) The minister shall not pay out money for the construction or extension of a school unless
- (a) the land has been approved by the appropriate government department or agency; and
 - (b) the construction or extension is planned in accordance with all applicable building standards and the school planning manual approved by the minister, and the building plans and the site have been approved by an official of the department designated for the purpose by the minister.
- (4) In addition to the requirements of subsection (3), the minister may require that the plans be developed and funding identified for landscaping of the land, including the provision of a playground area.

[1997 cS-12.2 s90](#)

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Operational money

91. Money for the operation and maintenance of schools, money for the transportation of students, school supplies and equipment and other money allocated for the purpose of or connected with education in schools shall be paid to boards in accordance with scales set out in a policy directive of the minister.

[1997 cS-12.2 s91](#)

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Salaries & other compensation

92. (1) The minister shall, from money voted for that purpose by the Legislature, arrange for the payment of the salaries of directors, assistant directors and teachers employed in schools and board offices and all the salaries shall be paid in accordance with scales approved by the Lieutenant-Governor in Council.

(2) A board shall not pay remuneration to directors, assistant directors and teachers in amounts greater than those specified under subsection (1).

(3) A board shall not make a payment to an employee as a result of the termination of his or her employment or the abolition of his or her position except as approved by the minister.

(4) A person whose employment has been terminated or whose position has been abolished by a board shall not have the right under an agreement, contract or by way of action to claim for a payment as a result of the termination of his or her employment that exceeds that approved by the minister.

[1997 cS-12.2 s92](#)

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Adjustments in salary

93. (1) The minister may make a payment to adjust the salary of a director, assistant director or teacher employed in a school or a board office, or pay an instalment of money, where there was insufficient payment of that salary or money.

(2) Where an overpayment of salary or money was made to a director, assistant director or teacher employed in a school or a board office, the minister, in consultation with the director, assistant director or teacher, may reduce or withhold future payment of salary or money until the amount overpaid is recovered.

[1997 cS-12.2 s93](#)

PART V FRENCH FIRST LANGUAGE SCHOOLS

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Conseil scolaire

94. (1) A conseil scolaire francophone provincial shall be elected for the province.

(2) The conseil scolaire is a corporation.

(3) The conseil scolaire shall operate in the French language and may as necessary communicate in the English language.

[1997 cS-12.2 s94](#)

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Composition of conseil scolaire

95. (1) The conseil scolaire, not exceeding 12 trustees, shall be elected by the voting members of the conseils d'école established under section 102 from among the voting members.

(2) Notwithstanding subsection (1),

(a) employees of the conseil scolaire;

(b) a person who has a contract with, or an interest in a contract with, the conseil scolaire; and

(c) unless prior written approval is given by the minister, employees of the department of the government responsible for education

are not eligible for election to the conseil scolaire.

(3) The number of trustees to be elected by each conseil d'école shall be set and may be changed by order of the minister on the recommendation of the conseil scolaire.

(4) Notwithstanding subsection (3), the first elected conseil scolaire shall comprise 10 trustees elected as follows:

(a) 4 from the conseil d'école de Port au Port;

(b) 2 from the conseil d'école de l'ouest du Labrador ;

(c) 2 from the conseil d'école de l'est du Labrador ; and

(d) 2 from the conseil d'école de St. John's .

(5) The conseil scolaire shall be elected not later than 30 days after the election of the conseils d'école under section 102.

[1997 cS-12.2 s95](#)

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Replacement of trustees

96. (1) Where a trustee

- (a) resigns or dies;
- (b) no longer resides in the province;
- (c) is absent from 3 consecutive meetings of the conseil scolaire without good reason; or
- (d) is no longer a member of the conseil d'ecole that elected him or her

the conseil scolaire shall inform the minister who shall declare that position vacant.

(2) Where the minister declares a position vacant under subsection (1), the conseil d'ecole that elected the trustee shall elect a trustee in his or her place.

(3) Subsections 95(1) and (2) apply to an election of a trustee under subsection (2).

[1997 cS-12.2 s96](#)

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Duties of conseil scolaire

97. (1) The conseil scolaire has, with respect to a French first language school, the same duties as a board under section 75 except for those referred to in paragraph 75(v).

(2) The conseil scolaire shall consult with the voting members of a conseil d'ecole on the operation of a school for which the conseil d'ecole is responsible, including the assignment of teachers and other staff.

[1997 cS-12.2 s97](#)

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Powers of conseil scolaire

98. (1) The conseil scolaire has, with respect to a French first language school, the same powers as a board under section 76 and in addition, may make recommendations under subsection 95(3), section 100, and subsections 102(2), 102(8), 102(10) and 114(3).

(2) The conseil scolaire may, subject to the approval of the minister, establish procedures for and conduct elections to the conseil scolaire and the conseils d'ecole.

[1997 cS-12.2 s98](#)

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French first language schools

99. (1) The conseil scolaire may establish, maintain and operate a French first language school where the school provides programs or courses of study that satisfy the minimum requirements as approved by the minister.

(2) A French first language school shall receive an allocation of resources as approved by the minister.

[1997 cS-12.2 s99](#)

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Building funds

100. The minister shall pay out money voted by the Legislature for the construction, extension and equipment of French first language schools in accordance with the recommendations of the conseil scolaire.

[1997 cS-12.2 s100](#)

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Operational money

101. Money for the operation and maintenance of French first language schools, for the transportation of students, school supplies and equipment and other money allocated for the purpose of or connected with education in a French first language school shall be paid to the conseil scolaire in accordance with scales set out in a policy directive of the minister.

[1997 cS-12.2 s101](#)

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Conseil d'ecole - voting members

102. (1) There shall be a conseil d'ecole responsible for each French first language school.

(2) The number of elected members comprising a conseil d'ecole, not exceeding 9, and each school for which the conseil d'ecole is responsible, shall be set and may be changed by order of the minister on the recommendation of the conseil scolaire.

(3) Notwithstanding subsection (2), the first elected

- (a) conseil d'ecole de Port au Port shall be responsible for each French first language school located in Mainland and Cape St. George;
- (b) conseil d'ecole de l'ouest du Labrador shall be responsible for each French first language school located in Labrador City or Wabush;
- (c) conseil d'ecole de l'est du Labrador shall be responsible for each French first language school located in Happy Valley - Goose Bay; and
- (d) conseil d'ecole de St. John's shall be responsible for each French first language school located in St. John's .

(4) A parent of

- (a) a student enrolled in a French first language school;
- (b) a child registered to attend a French first language school; and
- (c) a child who is eligible under this Act to be registered to attend a French first language school and who is not registered in another school

may vote in an election of members to a conseil d'ecole responsible for that school.

(5) A candidate for election to a conseil d'ecole shall be

(a) at least 18 years of age;

(b) a citizen of Canada or a lawful resident of Canada ;

(c) a resident of the province; and

(d) nominated by a person eligible to vote in an election of members to that conseil d'ecole.

(6) The principal of or a teacher in a French first language school is not eligible to be a candidate for election under this section to the conseil d'ecole responsible for that school.

(7) The director of the conseil scolaire is not eligible to be a candidate for election to a conseil d'ecole.

(8) Where fewer members are elected to a conseil d'ecole than the number set by order of the minister, the minister shall on the recommendation of the conseil scolaire or the interim conseil scolaire established under section 114 appoint the number necessary to satisfy the order.

(9) A member elected or appointed to a conseil d'ecole under this section shall be a voting member of the conseil d'ecole.

(10) The election of members to a conseil d'ecole shall be held at the same time as board elections are held under section 53 or at the time the minister directs on the recommendation of the conseil scolaire and the term of office of a member elected to a conseil d'ecole shall be the same as that of a trustee.

[1997 cS-12.2 s102](#)

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Conseil d'ecole - non-voting members

103. (1) The principal of each school for which a conseil d'ecole is responsible shall be a member of the conseil d'ecole by virtue of his or her position.

(2) Not more than 2 teachers from each school for which a conseil d'ecole is responsible may be elected by the teachers of that school to the conseil d'ecole.

(3) Upon the approval of a conseil d'ecole responsible for a school where high school courses are taught, the students in those courses may elect a student to the conseil d'ecole.

(4) A member of a conseil d'ecole referred to in this section shall be a non-voting member of the conseil d'ecole.

[1997 cS-12.2 s103](#)

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Chairperson elected

104. A conseil d'ecole shall elect a chairperson from among its voting members.

[1997 cS-12.2 s104](#)

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Vacancy on a conseil d'ecole

105. A vacancy on a conseil d'ecole shall be filled in the same manner as the member being replaced and the

replacement member shall serve only for the remainder of the term of office of the member being replaced but is eligible for re-election or re-appointment.

[1997 cS-12.2 s105](#)

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Purpose of a conseil d'ecole

106. The purpose of a conseil d'ecole is to develop, encourage and promote policies, practices and activities to enhance French language and culture, a French ambience, the quality of school programs and the levels of student achievement in a school for which it is responsible.

[1997 cS-12.2 s106](#)

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Functions of a conseil d'ecole

107. (1) The functions of a conseil d'ecole are, with respect to a school for which it is responsible, to

- (a) represent the cultural, linguistic and educational interests of the school;
- (b) advise the conseil scolaire on cultural and linguistic issues in the school;
- (c) advise the conseil scolaire on the quality of teaching and learning in the school;
- (d) facilitate parent and community involvement in teaching and learning in the school; and
- (e) advise the conseil scolaire on matters of concern to the school and the parents of students of the school.

(2) A conseil d'ecole shall operate in the French language and may as necessary communicate in the English language.

[1997 cS-12.2 s107](#)

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Duties of a conseil d'ecole

108. (1) A conseil d'ecole shall, with respect to a school for which it is responsible,

- (a) approve, for recommendation to the conseil scolaire, a plan for encouraging and promoting the French language and culture and a French ambience, and for improving teaching and learning in the school;
- (b) support and promote the plan approved by the conseil scolaire for encouraging and promoting the French language and culture and a French ambience, and for improving teaching and learning in the school;
- (c) consider information respecting performance standards in the school;
- (d) assist in the system of monitoring and evaluating standards in the school;
- (e) monitor the implementation of recommendations in reports on the performance of the school;
- (f) conduct meetings with parents on matters within its responsibility under this section;

- (g) ensure that the report on the school prepared under paragraph 24(3)(k) is available to parents and members of the public;
- (h) communicate concerns respecting the policies and practices of the conseil scolaire to the conseil scolaire; and
- (i) approve and monitor activities for raising funds for the school.

(2) A conseil d'école may, subject to the by-laws of the conseil scolaire, approve a levy, the payment of which is voluntary, once in a school year, instead of, or as a supplement to, fund raising activities for a school for which it is responsible.

(3) A conseil d'école shall operate in accordance with the by-laws of the conseil scolaire.

[1997 cS-12.2 s108](#)

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Protocol

109. (1) The conseil scolaire shall enter into a protocol with each conseil d'école which shall serve as a guide and reference for the operations of the conseil scolaire and the conseil d'école.

(2) The conseil scolaire may, with the consent of a conseil d'école, assign responsibilities to the conseil d'école in addition to those set out in sections 107 and 108.

[1997 cS-12.2 s109](#)

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Directors

110. (1) The conseil scolaire shall, subject to the prior written approval of the minister, appoint

- (a) a director; and
- (b) an assistant director of finance and business administration.

(2) A director and an assistant director shall be appointed for not more than a 5 year term and, following a satisfactory performance evaluation by the conseil scolaire, the appointment may be renewed.

(3) The conseil scolaire may terminate the employment of a director or an assistant director, other than for cause, by giving him or her 3 months' written notice, and the conseil scolaire shall report the dismissal in writing to the minister immediately upon giving the notice.

(4) Notwithstanding that the conseil scolaire may employ a director or an assistant director under this section, a contract of employment between the conseil scolaire and a director or an assistant director shall not be entered into without the prior written approval of that contract by the minister, and a contract of employment entered into without that approval shall be void.

[2012 c13 s7](#)

Sections not applicable

111. (1) Section 8 does not apply to a student in a French first language school.

(2) Sections 25 and 26 do not apply to a French first language school.

(3) Sections 52 to 55, sections 58 and 59, sections 75 to 77, section 79, section 89, section 91 and section 120 do not apply to the conseil scolaire or a French first language school.

(4) For the purpose of this Part, a reference in the other parts of this Act to

(a) a board shall be considered to include a reference to the conseil scolaire;

(b) a district shall be considered to include a reference to the province; and

(c) a school shall be considered to include a reference to a French first language school

where to do so would not be inconsistent with this Part.

[1997 cS-12.2 s111](#)

Property

112. (1) Title to all real and personal property used for the purpose of education at Ecole Ste. Anne and Ecole Notre Dame du Cap in the communities of Mainland and Cape St. George that were, on the coming into force of this Part, operated by a board as French first language schools shall be transferred to the conseil scolaire by the board or denominational authority having title.

(2) Section 84 applies, with the necessary changes, to real and personal property used for the purpose of education in a French first language school, and to effect a transfer of property referred to in subsection (1).

[1997 cS-12.2 s112](#)

Conseil scolaire only to operate French first language school

113. After this Part comes into force, a board, other than the conseil scolaire, shall not operate a French first language school.

[1997 cS-12.2 s113](#)

Interim conseil scolaire

114. (1) The interim conseil scolaire is continued.

(2) Appointments to the interim conseil scolaire shall be made on the recommendation of the Federation des Parents Francophones de Terre-Neuve et du Labrador in accordance with the requirements of subsection 95(4).

(3) The interim conseil scolaire shall be dissolved upon the order of the minister on the recommendation of the conseil scolaire first elected under section 95.

(4) The interim conseil scolaire shall

(a) appoint a director as provided for in section 110;

(b) subject to the approval of the minister, establish procedures for the first election of the conseils d'ecole and the conseil scolaire;

(c) conduct the elections for the first conseils d'ecole at the same time as board elections are held or at the time the minister directs;

(d) conduct the election for the first conseil scolaire;

- (e) notwithstanding subsection 102(2), recommend to the minister the number of members to be elected to each conseil d'école referred to in subsection 102(3);
- (f) determine the organizational structure of the conseil scolaire;
- (g) employ persons necessary to enable it and the conseil scolaire to carry out its responsibilities;
- (h) establish financial and administrative procedures necessary to enable it and the conseil scolaire to carry out their responsibilities; and
- (i) furnish and supply the interim conseil scolaire with adequate equipment and supplies to enable it and the conseil scolaire to carry out their mandate.

[1997 cS-12.2 s114](#)

Board's responsibility continued

115. Notwithstanding section 113, until the first conseil scolaire is elected under section 95, a board that operated a French first language school prior to the coming into force of this Part shall continue to operate the French first language school after this Part comes into force in the same manner as it was operated before this Part came into force.

[1997 cS-12.2 s115](#)

Transitional: Agreements and personnel of board

116. (1) All agreements, contracts, obligations and assessments made in relation to a French first language school and existing immediately before this Part comes into force shall continue.

(2) Where a board ceases to operate a French first language school, the conseil scolaire is the successor in law to the board in respect of an employment contract held by the board in respect of that school, and the conseil scolaire is substituted for the board in respect of that contract.

(3) When the board ceases to operate Ecole Ste. Anne and Ecole Notre Dame du Cap in the communities of Mainland and Cape St. George, the conseil scolaire is the successor in law to the board for those schools, and all agreements, contracts, debts, liabilities and other obligations of the board for those schools shall be assumed by the conseil scolaire and the conseil scolaire shall fulfil and satisfy all those agreements, contracts, debts, liabilities and other obligations.

(4) Where a board ceases to operate a French first language school, other than one referred to in subsection (3), the board shall enter into an agreement with the conseil scolaire in relation to all agreements, contracts, debts, liabilities and other obligations continued under subsection (1) except an employment contract referred to in subsection (2).

(5) Where there is a dispute as to the assumption of an agreement, contract, debt, liability or other obligation under this section the minister shall make an order determining the matter and that order shall be final.

[1997 cS-12.2 s116](#)

PART VI GENERAL

Powers of the minister

117. The minister may

- (a) prescribe books, materials, programs and courses of study for schools;
- (b) issue policy directives, including policy directives with respect to
 - (i) the establishment, organization and administration of public examinations and awards for students,
 - (ii) the allocation and distribution of money voted by the Legislature or otherwise available to a board for the purpose of education,
 - (iii) transportation of students to and from schools,
 - (iv) an agreement under section 84;
 - (v) special education,
 - (vi) student evaluation,
 - (vii) the evaluation of school programs and performance,
 - (viii) the professional development of teachers and employees of boards,
 - (viii.1) the payment of a fee for the cost of supplies provided to a student in a school other than a private school,
 - (ix) the payment of a fee by a student who possesses a student authorization under a Canada visitor visa and who has come to the province for the purpose of attending school, and
 - (x) an agreement under section 51.1;
- (c) prescribe administrative functions and the manner in which they are to be performed by a board and in a school other than a private school;
- (d) require a school or class to be closed for a specified period;
- (e) authorize a board to employ an emergency supply for a specified period where the minister is satisfied that a teacher is not available;
- (f) extend the term of a board having jurisdiction for an area falling within a new district until the new district is established;
- (g) require a board to comply with an agreement entered into by the minister for educational purposes; and
- (h) do all those things that are necessary for the administration of this Act.

[1997 cS-12.2 s117](#); [2000 c32 s2](#); [2012 c13 s8](#)

Regulations

118. (1) The Lieutenant-Governor in Council may make regulations

- (a) respecting the establishment, maintenance, operation, organization, administration and delivery of education programs, facilities and services for students;
- (b) respecting employment classifications, practices and procedures, and terms and conditions of employment of employees of boards;

- (c) respecting the election and appointment of trustees;
 - (d) respecting the holding of religious observances in schools;
 - (e) defining a word or phrase used in this Act or changing the definition of a word or phrase defined in this Act;
 - (f) respecting a policy on employment equity referred to in paragraph 75(1)(f);
 - (f.1) respecting the application and modification of an agreement referred to in subsection 84(4) to a person who purchases property from a denominational authority, including the prescription of new or additional terms and conditions;
 - (f.2) prescribing terms and conditions applicable to a person who purchases property from a denominational authority in the circumstances described in subsection 84(4.3);
 - (g) respecting appeals; and
 - (h) generally to give effect to the purpose of this Act.
- (2) Regulations made under this Act may be made with retroactive effect.

[1997 cS-12.2 s118; 2007 c19 s2](#)

Penalty

119. (1) A person who violates a provision of this Act for which another section of this Act does not provide a penalty, commits an offence and is liable on summary conviction

- (a) for a first offence, to a fine not exceeding \$1,000 or to imprisonment for a term not exceeding 3 months or to both a fine and imprisonment; and
- (b) for a subsequent offence, to a fine not exceeding \$3,000 or to imprisonment for a term not exceeding 6 months or to both a fine and imprisonment.

(2) A prosecution under this section shall be commenced within 2 years after the commission of the alleged offence.

[1997 cS-12.2 s119](#)

PART VII TRANSITIONAL, CONSEQUENTIAL, REPEAL AND COMMENCEMENT

Transitional

120. For the 1997 - 1998 school year, every school established, maintained and operated for a class of persons having rights under Term 17 under the former Act shall continue as a school established, maintained and operated for that class of persons, and a school operated jointly by agreement by 2 or more dissolved school boards under the former Act shall continue to be operated as far as practical in accordance with that agreement.

[1997 cS-12.2 s120](#)

DEC abolished

121. (1) The Denomination Education Commission is abolished.

(2) Money and other property of the commission are the property of the Crown.

(3) The liabilities and obligations of the commission are the liabilities and obligations of the Crown.

[1997 cS-12.2 s121](#)

1996 cE-2.2 Rep.

122. The *Education Act, 1996* is repealed.

RSN1990 cS-11 Amdt.

123. Paragraph 2(c) of the *School Boards' Association Act* is amended by striking out the year "1996" and substituting the year "1997".

[1997 cS-12.2 s123](#)

1996 cS-12.1 Rep.

124. The *Schools Act, 1996* is repealed.

[1997 cS-12.2 s124](#)

RSN1990 cT-2 Amdt.

125. (1) Paragraph 2(f) of the *Teachers' Association Act* is amended by striking out the year "1996" and substituting the year "1997".

(2) Paragraph 2(g) of the Act is amended by striking out the year "1996" and substituting the year "1997".

(3) Subsection 6(1) of the Act is amended by striking out the year "1996" and substituting the year "1997".

(4) Paragraph 8(b) of the Act is amended by striking out the year "1996" and substituting the year "1997".

[1997 cS-12.2 s125](#)

RSN1990 cT-3 Amdt.

126. (1) Paragraph 2(1)(k) of the *Teachers' Collective Bargaining Act* is amended by striking out the year "1996" and substituting the year "1997".

(2) Paragraph 2(1)(l) of the Act is amended by striking out the year "1996" and substituting the year "1997".

(3) Subsection 2(2) of the Act is amended by striking out the year "1996" and substituting the year "1997".

(4) Section 30 of the Act is amended by striking out the year "1996" and substituting the year "1997".

[1997 cS-12.2 s126](#)

SN1991 c17 Amdt.

127. (1) Paragraph 2(1)(o) of the *Teachers' Pensions Act* is repealed and the following substituted:

- (o) "teacher" means a person holding a valid and subsisting certificate or grade or licence not lower than the emergency supply licence issued under the *Teacher Training Act*, who is, subject to the *Schools Act, 1997* appointed or employed by a board of directors or a school board to give instruction or to administer or supervise instructional services in a college or a school and includes
 - (i) a director or an assistant director, except the assistant director of finance and administration, appointed under section 79 of the *Schools Act, 1997* , and
 - (ii) every person who is considered a teacher under section 3;.

(2) Subsection 3(1) of the Act is repealed and the following substituted:

Application

3. (1) This Act applies to every teacher who

- (a) teaches
 - (i) in a school or a college and is paid from public funds allocated under the *Schools Act, 1997* , or is approved by the minister responsible for education for the purpose of this Act, or
 - (ii) in a school operated by the department under section 50 of the *Schools Act, 1997* ;
- (b) has similar qualifications approved by the minister responsible for education and is employed in a special school or in an institution in the province approved by the minister responsible for education for the purpose of this Act and receives his or her total remuneration directly from public funds voted by the Legislature;
- (c) has similar qualifications approved by the Teachers' Certification Committee established under the *Teacher Training Act* and is employed full time in the province to teach
 - (i) in a school,
 - (ii) in a private school,
 - (iii) in an institution for children with disabilities, or
 - (iv) a regular course for children with disabilities in a school,where that school, institution or course has been approved under the *Schools Act, 1997* ; or
- (d) is an administrative officer of the Newfoundland and Labrador Teacher's Association by virtue of the *Teachers' Association Act* , and who was before his or her appointment
 - (i) a teacher to whom this Act or the former Act applied, or
 - (ii) a public servant to whom the *Public Service Pensions Act, 1991* applied, andis considered to be, during his or her term of office as the administrative officer, a teacher for the purpose of the pension plan.

(3) Subparagraph 13(2)(a)(ii) of the Act is amended by striking out the year "1996 " and substituting the year "1997 ".

(4) Paragraph 14(1)(b) of the Act is amended by striking out the year "1996 " and substituting the year "1997 ".

(5) Subsection 40(1) of the Act is amended by striking out the year "1996 " and substituting the year "1997 ".

[1997 cS-12.2 s127](#)

RSN1990 cT-1 Amdt.

128. (1) Subsection 5(3) of the *Teacher Training Act* is amended by striking out the year "1996" and substituting the year "1997".

(2) Paragraph 10(1)(f) of the Act is amended by striking out the year "1996" and substituting the year "1997".

[1997 cS-12.2 s128](#)

Commencement

129. This Act or a Part or a section of this Act shall come into force on a day to be proclaimed by the Lieutenant-Governor in Council. (In force - Jan. 9/98)

[1997 cS-12.2 s129](#)

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